

REGENTS EXAM IN U.S. HISTORY AND GOVERNMENT

The University of the State of New York

REGENTS HIGH SCHOOL EXAMINATION

**UNITED STATES HISTORY
AND GOVERNMENT**

Tuesday, June 18, 2024 — 9:15 a.m. to 12:15 p.m., only

Student Name _____

School Name _____

The possession or use of any communications device is strictly prohibited when taking this examination. If you have or use any communications device, no matter how briefly, your examination will be invalidated and no score will be calculated for you.

Print your name and the name of your school on the lines above. A separate answer sheet for Part I has been provided to you. Follow the instructions from the proctor for completing the student information on your answer sheet. Then fill in the heading of each page of your essay booklet.

This examination has three parts. You are to answer **all** questions in **all** parts. Use black or dark-blue ink to write your answers to Parts II, III A, and III B.

Part I contains 28 multiple-choice questions. Record your answers to these questions as directed on the answer sheet.

Part II contains two short-essay questions. Write your answers to these questions in the essay booklet, beginning on page 3.

Part III is based on several documents:

Part III A contains the documents. When you reach this part of the test, enter your name and the name of your school on the first page of this section.

Each document is followed by one question. Write your answer to each question in this examination booklet on the lines following that question.

Part III B contains one essay question based on the documents. Write your answer to this question in the essay booklet, beginning on page 7.

When you have completed the examination, you must sign the declaration printed at the end of the answer sheet, indicating that you had no unlawful knowledge of the questions or answers prior to the examination and that you have neither given nor received assistance in answering any of the questions during the examination. Your answer sheet cannot be accepted if you fail to sign this declaration.

DO NOT OPEN THIS EXAMINATION BOOKLET UNTIL THE SIGNAL IS GIVEN.

Part I

Answer all questions in this part.

Directions (1–28): For each statement or question, record on your separate answer sheet the *number* of the word or expression that, of those given, best completes the statement or answers the question.

Base your answer to question 1 on the passage below and on your knowledge of social studies.

. . . Having frequent Occasions to hold public Councils, they have acquired great Order and Decency in conducting them. The old Men sit in the foremost Ranks, the Warriors in the next, and the Women and Children in the hindmost. The Business of the Women is to take exact Notice of what passes, imprint it in their Memories (for they have no Writing), and communicate it to their Children. They are the Records of the Council, and they preserve Traditions of the Stipulations in Treaties 100 Years back; which, when we compare with our Writings, we always find exact. . . .

Source: Benjamin Franklin Papers (Wampum Chronicles) before January 7, 1784

1 Which claim about this group of Native Americans is supported by this passage?

- (1) Acquiring their land is justified.
- (2) Women play a significant role in their society.
- (3) Their treaties are preserved in writing.
- (4) Colonial missionaries need to understand their beliefs.

Base your answers to questions 2 and 3 on the passage below and on your knowledge of social studies.

. . . By adopting the three-fifths clause, prolonging the import slave trade, and providing a fugitive-slave clause, the constitution defended slavery. . . .

Source: Alan Taylor, *American Revolutions: A Continental History, 1750–1804*, W. W. Norton & Company, 2016

2 Why were the writers of the United States Constitution willing to compromise on these issues?

- (1) to gain Southern support for ratification
- (2) to make approval of the Bill of Rights easier
- (3) to end slavery after 1808
- (4) to give Northern states an advantage in the House of Representatives

3 What was the primary purpose of the Three-fifths Clause?

- (1) to quickly end the importation of slaves
- (2) to help determine a state's congressional representation
- (3) to provide for the return of escaped slaves
- (4) to ban slavery in the western territories

Base your answers to questions 6 and 7 on the excerpt below and on your knowledge of social studies.

Excerpt from President Abraham Lincoln’s Second Inaugural Address on March 4, 1865

... With malice toward none; with charity for all; with firmness in the right, as God gives us to see the right, let us strive on to finish the work we are in; to bind up the nation’s wounds; to care for him who shall have borne the battle, and for his widow, and his orphan;—to do all which may achieve and cherish a just, and a lasting peace, among ourselves, and with all nations.

Source: President Abraham Lincoln, Second Inaugural Address, March 4, 1865

- | | |
|---|--|
| 6 This excerpt suggests that President Abraham Lincoln believed the best way to heal the nation after the Civil War was through | 7 What does this excerpt suggest about President Lincoln’s future Reconstruction policy? |
| (1) anger | (1) It would be rejected by the defeated South. |
| (2) selfishness | (2) Rapid reunification would be his goal. |
| (3) vengeance | (3) Federal military occupation of the South would be harsh. |
| (4) forgiveness | (4) It would guarantee his reelection. |

Base your answers to questions 8 and 9 on the trial transcript below and on your knowledge of social studies.

**An Account of the Proceedings on the Trial of Susan B. Anthony on the Charge of Illegal Voting,
...Rochester, NY, 1874**

Judge Hunt—The sentence of the Court is that you pay a fine of one hundred dollars and the costs of the prosecution.

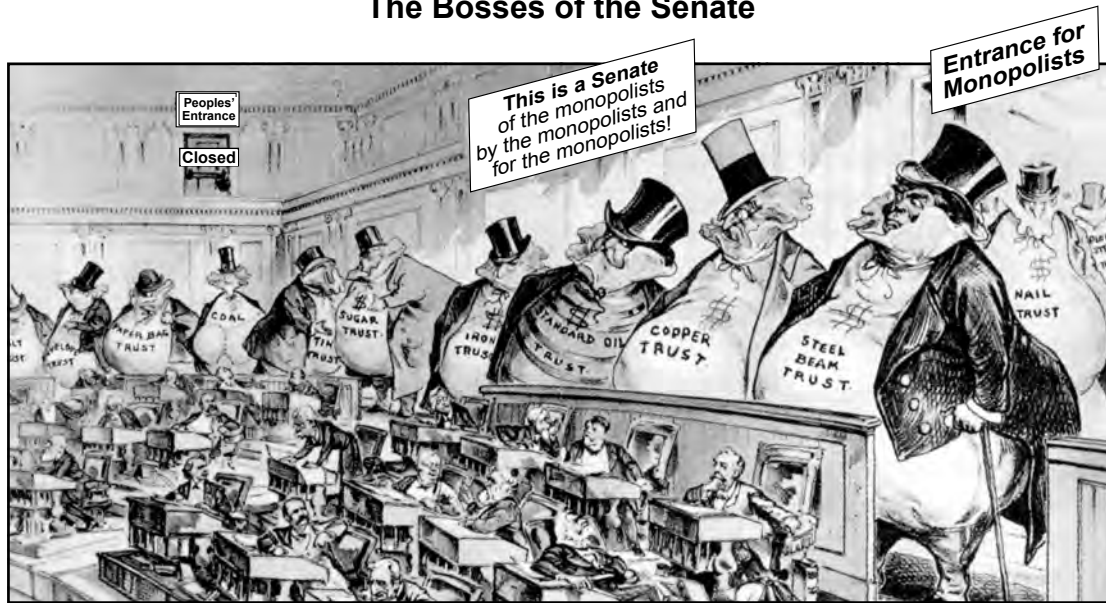
Miss Anthony—May it please your honor, I shall never pay a dollar of your unjust penalty. All the stock in trade I possess is a \$10,000 debt, incurred by publishing my paper—The Revolution—four years ago, the sole object of which was to educate all women to do precisely as I have done, rebel against your man-made, unjust, unconstitutional forms of law, that tax, fine, imprison and hang women, while they deny them the right of representation in the government, and I shall work on with might and main to pay every dollar of that honest debt, but not a penny shall go to this unjust claim. And I shall earnestly and persistently continue to urge all women to the practical recognition of the old revolutionary maxim, that “Resistance to tyranny is obedience to God.”...

Source: The Elizabeth Cady Stanton and Susan B. Anthony Papers Project, Rutgers.edu

- | | |
|---|---|
| 8 Which type of action is Susan B. Anthony advocating in this transcript? | 9 Anthony’s statement is part of her campaign to gain |
| (1) running for elected offices | (1) the abolition of slavery |
| (2) civil disobedience | (2) a progressive income tax |
| (3) unionization of workers | (3) woman’s suffrage |
| (4) economic boycotts | (4) consumer safety regulations |

Base your answers to questions 10 and 11 on the cartoon below and on your knowledge of social studies.

The Bosses of the Senate



Source: Joseph J. Keppler, *Puck*, 1889 (adapted)

10 According to this cartoon, whose interests was the Senate serving?

- | | |
|----------------------|----------------------|
| (1) big business | (3) labor unions |
| (2) conservationists | (4) southern farmers |

11 The viewpoint illustrated in this cartoon increased public support for

- (1) elimination of the electoral college
- (2) direct election of senators
- (3) creation of the Interstate Commerce Commission
- (4) reducing the number of terms a president could serve

Base your answers to questions 12 and 13 on the passage below and on your knowledge of social studies.

War Message to Congress

. . . The grounds for such intervention may be briefly summarized as follows:

First. In the cause of humanity and to put an end to the barbarities, bloodshed, starvation, and horrible miseries now existing there, and which the parties to the conflict are either unable or unwilling to stop or mitigate [lessen]. It is no answer to say this is all in another country, belonging to another nation, and is therefore none of our business. It is specially our duty, for it is right at our door.

Second. We owe it to our citizens in Cuba to afford them that protection and indemnity [security] for life and property which no government there can or will afford, and to that end to terminate the conditions that deprive them of legal protection.

Third. The right to intervene may be justified by the very serious injury to the commerce, trade, and business of our people and by the wanton [deliberate] destruction of property and devastation of the island. . . .

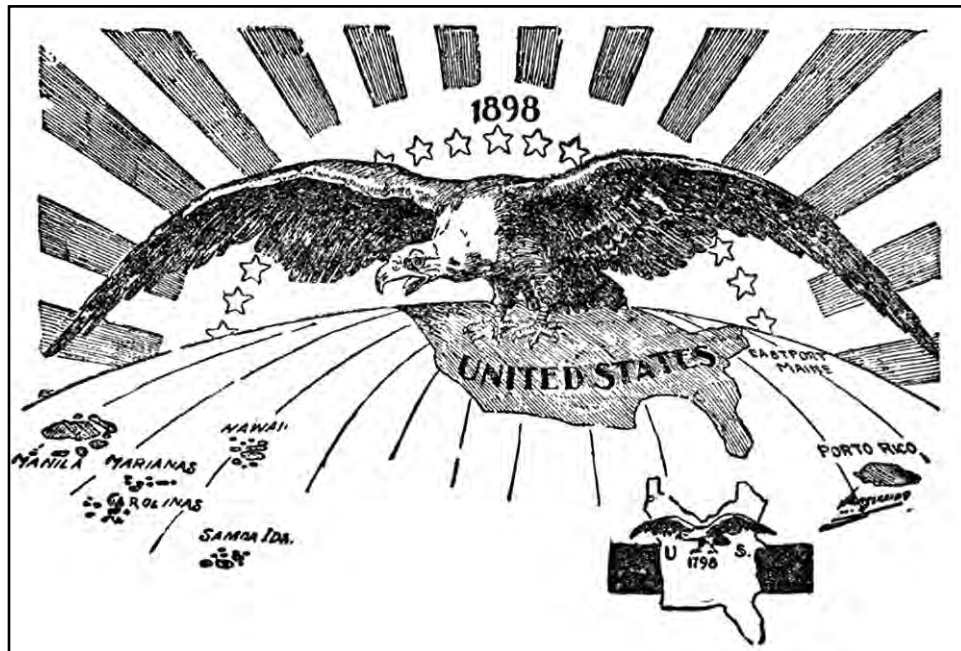
The issue is now with the Congress. It is a solemn responsibility. I have exhausted every effort to relieve the intolerable condition of affairs which is at our doors. Prepared to execute every obligation imposed upon me by the Constitution and the law, I await your action. . . .

Source: President William McKinley, Message to Congress, April 11, 1898

- | | |
|---|--|
| 12 President William McKinley's message to Congress illustrates which constitutional principle? | 13 Which United States foreign policy was implemented during this time period? |
| (1) judicial review | (1) mercantilism (3) imperialism |
| (2) reserved powers | (2) isolationism (4) appeasement |
| (3) popular sovereignty | |
| (4) separation of powers | |

Base your answers to questions 14 and 15 on the cartoon below and on your knowledge of social studies.

10,000 Miles From Tip to Tip



Source: *Philadelphia Press*, 1899 (adapted)

14 A historian would make best use of this cartoon to study which topic?

- (1) the purchase of Alaska
- (2) the Open Door policy
- (3) the United States as a world power
- (4) United States entry into World War I

15 What was a direct response to the situation illustrated in the cartoon?

- (1) Anti-imperialist sentiment increased.
- (2) Farmers demanded more imports of food products.
- (3) Industrialists sought tariffs on Asian manufactured goods.
- (4) Nativist attitudes decreased.

Base your answers to questions 16 and 17 on the cartoon below and on your knowledge of social studies.

A NAUSEATING JOB, BUT IT MUST BE DONE.



Source: *Utica Saturday Globe*, 1906 (adapted)

16 Which book highlighted the problem shown in this cartoon?

- (1) *How the Other Half Lives*
- (2) *The Octopus*
- (3) *The Jungle*
- (4) *The Shame of the Cities*

17 Which federal action was taken in response to conditions similar to those illustrated in this cartoon?

- (1) the passage of the Interstate Commerce Act
- (2) the passage of the Pure Food and Drug Act
- (3) increased regulation of banks
- (4) increased efforts in the area of conservation

Base your answers to questions 18 and 19 on the passage below and on your knowledge of social studies.

. . . The world must be made safe for democracy. Its peace must be planted upon the tested foundations of political liberty. We have no selfish ends to serve. We desire no conquest, no dominion. We seek no indemnities [repayments] for ourselves, no material compensation for the sacrifices we shall freely make. We are but one of the champions of the rights of mankind. We shall be satisfied when those rights have been made as secure as the faith and the freedom of nations can make them. . . .

Source: President Woodrow Wilson's War Message to Congress, April 2, 1917

- | | |
|---|---|
| 18 What is one justification President Woodrow Wilson gives for a declaration of war? | 19 What did President Wilson propose to support the ideals expressed in this message? |
| (1) acquisition of overseas colonies | (1) establishment of the Federal Reserve System |
| (2) compensation for property lost at sea | (2) creation of the League of Nations |
| (3) increased immigration from Europe | (3) passage of a higher protective tariff |
| (4) self-government for all nations | (4) decreasing aid to Europe |
-

Base your answers to questions 20 and 21 on the photograph below and on your knowledge of social studies.

Party Watchfires Burn Outside White House, January 1919



Source: Library of Congress (adapted)

- | | |
|--|---|
| <p>20 Which section of the Bill of Rights protects the actions shown in this photograph?</p> <ul style="list-style-type: none">(1) "the right of the people to keep and bear arms, shall not be infringed"(2) "no warrants shall issue, but upon probable cause"(3) "nor shall any person be subject for the same offense to be twice put in jeopardy"(4) "the right of the people peaceably to assemble" | <p>21 What was the primary goal of the protest shown in this photograph?</p> <ul style="list-style-type: none">(1) to disagree with American involvement in World War I(2) to promote the ratification of the Treaty of Versailles(3) to gain support for a national woman's suffrage amendment(4) to oppose restrictive immigration legislation |
|--|---|

Base your answer to question 22 on the passage below and on your knowledge of social studies.

It is impossible to tell whether prohibition is a good thing or a bad thing. It has never been enforced in this country.

There may not be as much liquor in quantity consumed to-day as there was before prohibition, but there is just as much alcohol. . . .

Source: New York City Mayor Fiorello H. LaGuardia, Statement to Congress on the subject of Prohibition, 1926

22 What was the primary reason for the problem described by New York City Mayor Fiorello LaGuardia?

- (1) Tax revenues increased as a result of Prohibition.
 - (2) Many Americans refused to accept that consuming alcohol was wrong.
 - (3) Americans discovered that imported alcohol was superior to domestic alcohol.
 - (4) Bootleggers drove up prices by restricting the supply of alcohol.
-

Base your answers to questions 23 and 24 on the passage below and on your knowledge of social studies.

. . . Our greatest primary task is to put people to work. This is no unsolvable problem if we face it wisely and courageously. It can be accomplished in part by direct recruiting by the Government itself, treating the task as we would treat the emergency of a war, but at the same time, through this employment, accomplishing greatly needed projects to stimulate and reorganize the use of our natural resources. . . .

Finally, in our progress toward a resumption of work we require two safeguards against a return of the evils of the old order: there must be a strict supervision of all banking and credits and investments, so that there will be an end to speculation with other people's money; and there must be provision for an adequate but sound currency. . . .

Source: President Franklin D. Roosevelt, First Inaugural Address, March 4, 1933

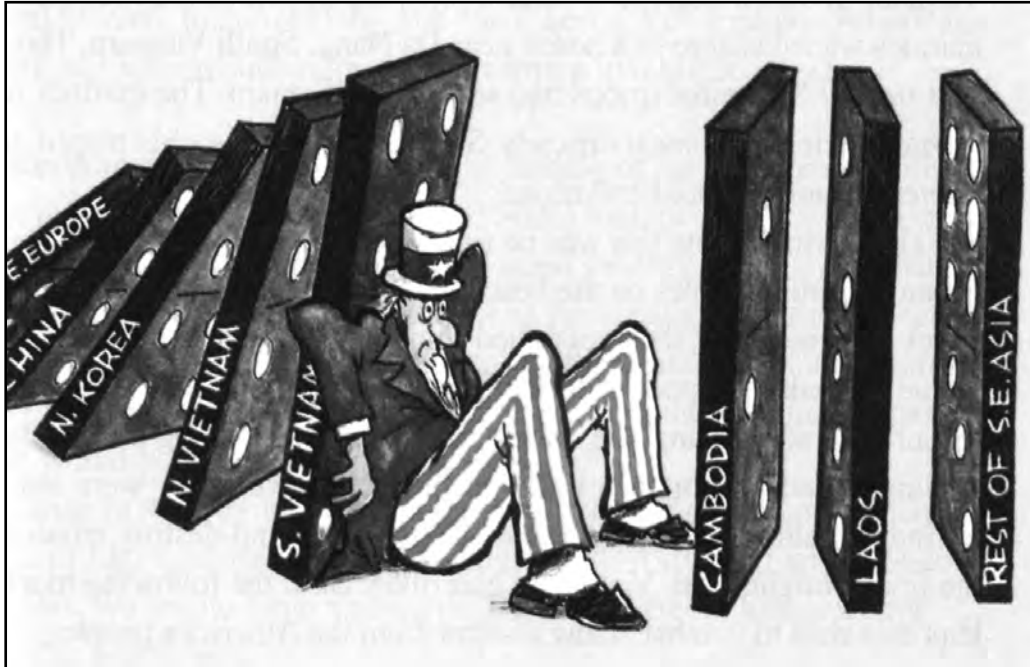
23 Which New Deal program addressed the “greatest primary task” President Franklin D. Roosevelt referred to in this passage?

- (1) Works Progress Administration
- (2) Emergency Banking Relief Act
- (3) Securities and Exchange Commission
- (4) Social Security Act

24 What was one cause of the national economic emergency referred to in this passage?

- (1) costs of social welfare programs
 - (2) passage of antitrust laws and high taxes
 - (3) buying on margin and excessive use of credit
 - (4) a shortage of American factories making consumer goods
-

Base your answer to question 25 on the cartoon below and on your knowledge of social studies.



Source: Maggie Zhang

25 What conclusion can best be drawn from this cartoon?

- (1) The United States was reluctant to commit troops to Southeast Asia.
 - (2) A united Vietnam was necessary for maintaining foreign alliances.
 - (3) The United States was shifting its foreign policy from isolationism to imperialism.
 - (4) Involvement in South Vietnam was necessary to prevent communist expansion.
-

Base your answers to questions 26 and 27 on the cartoon below and on your knowledge of social studies.



Source: Stuart Carlson, 2012

- | | |
|---|--|
| <p>26 What conclusion can best be drawn from the cartoon?</p> <ul style="list-style-type: none">(1) Voters in a few states can decide presidential elections.(2) Boundary lines between states should be redrawn.(3) Presidential candidates only come from a few states.(4) Political power in Congress is held by the president's political party. | <p>27 What change has been proposed to address the issue raised by the cartoon?</p> <ul style="list-style-type: none">(1) reapportionment of state legislatures(2) direct popular vote for the president(3) allowing Congress to elect the president(4) restricting voting rights of immigrants |
|---|--|

Base your answer to question 28 on the passage below and on your knowledge of social studies.

. . . One of the most significant demographic trends of the 20th century has been the steady shifting of the population west and south. . . . In 1900, the majority (62 percent) of the population lived in either the Northeast or the Midwest. This combined proportion declined each decade during the century. By 1980, the majority (52 percent) of the country's population resided in either the South or the West. This trend continued to the end of the century, with the combined South and West regional populations representing 58 percent of the total population of the United States in 2000. . . .

Source: Demographic Trends in the 20th Century, U.S. Census Bureau, November 2002

- 28 What was a direct political result of the population changes described in the passage?
- (1) Southwest states gained more electoral votes in presidential elections.
 - (2) Midwest states lost representation in the Senate.
 - (3) Northeast states gained representation in the House of Representatives.
 - (4) Overall public support for the electoral college increased.
-

Answers to the Short-Essay Questions (29 and 30) and the Civic Literacy Essay Question (37) are to be written in the separate essay booklet.

Part II

SHORT-ESSAY QUESTIONS (SEQs)

These Short-Essay Questions are based on the accompanying documents and are designed to test your ability to work with historical documents. Each Short-Essay Question set consists of two documents. Some of these documents have been edited for the purposes of these questions. Keep in mind that the language and images used in a document may reflect the historical context of the time in which it was created.

SEQ Set 1 (Question 29)

Task: Read and analyze the following documents, applying your social studies knowledge and skills to write a short essay of two or three paragraphs in which you:

- Describe the historical context surrounding these documents
- Identify and explain the **relationship** between the events and/or ideas found in these documents (Cause and Effect, **or** Similarity/Difference, **or** Turning Point)

In developing your short-essay answer of two or three paragraphs, be sure to keep these explanations in mind:

Describe means “to illustrate something in words or tell about it.”

Historical Context refers to “the relevant historical circumstances surrounding or connecting the events, ideas, or developments in these documents.”

Identify means “to put a name to or to name.”

Explain means “to make plain or understandable; to give reasons for or causes of; to show the logical development or relationship of.”

Types of Relationships:

Cause refers to “something that contributes to the occurrence of an event, the rise of an idea, or the bringing about of a development.”

Effect refers to “what happens as a consequence (result, impact, outcome) of an event, an idea, or a development.”

Similarity tells how “something is alike or the same as something else.”

Difference tells how “something is not alike or not the same as something else.”

Turning Point is “a major event, idea, or historical development that brings about significant change. It can be local, regional, national, or global.”

SEQ Set 1 Directions (Question 29): Read and analyze the following documents before writing your short essay in the separate essay booklet.

Document 1

. . . We consider the underlying fallacy of the plaintiff's [Homer Plessy] argument to consist in the assumption that the enforced separation of the two races stamps the colored race with a badge of inferiority. If this be so, it is not by reason of anything found in the act, but solely because the colored race chooses to put that construction upon it. . . . The argument also assumes that social prejudice may be overcome by legislation, and that equal rights cannot be secured to the Negro [African-American] except by an enforced commingling [blending] of the two races. We cannot accept this proposition. If the two races are to meet on terms of social equality, it must be the result of natural affinities [relationships], a mutual appreciation of each other's merits and a voluntary consent of individuals. . . .

Legislation is powerless to eradicate racial instincts or to abolish distinctions based upon physical differences, and the attempt to do so can only result in accentuating the difficulties of the present situation. If the civil and political right of both races be equal, one cannot be inferior to the other civilly or politically. If one race be inferior to the other socially, the Constitution of the United States cannot put them upon the same plane.

Source: Justice Henry Billings Brown, Majority Opinion in *Plessy v. Ferguson*, 1896

Document 2

. . . To separate them from others of a similar age and qualifications solely because of their race generates a feeling of inferiority as to their status in the community that may affect their hearts and minds in a way unlikely ever to be undone. The effect of this separation on their educational opportunities was well stated by a finding in the Kansas case by a court which nevertheless felt compelled to rule against the Negro [African-American] plaintiffs:

“Segregation of white and colored children in public schools has a detrimental effect upon the colored children. The impact is greater when it has the sanction of the law; for the policy of separating the races is usually interpreted as denoting the inferiority of the Negro group. A sense of inferiority affects the motivation of a child to learn. Segregation with the sanction of law, therefore, has a tendency to retard [restrict] the educational and mental development of Negro children and to deprive them of some of the benefits they would receive in a racially integrated school system.” . . .

Source: Chief Justice Earl Warren, Majority Opinion in *Brown v. Board of Education*, 1954

SEQ Set 1 (Question 29)

Task: Based on your reading and analysis of these documents, apply your social studies knowledge and skills to write a short essay of two or three paragraphs in which you:

- Describe the historical context surrounding these documents
- Identify and explain the **relationship** between the events and/or ideas found in these documents (Cause and Effect, **or** Similarity/Difference, **or** Turning Point)

Guidelines:

In your short essay, be sure to

- Develop all aspects of the task
- Incorporate relevant outside information
- Support the task with relevant facts and examples

You are *not* required to include a separate introduction or conclusion in your short essay of two or three paragraphs.

SEQ Set 2 (Question 30)

Task: Read and analyze the following documents, applying your social studies knowledge and skills to write a short essay of two or three paragraphs in which you:

- Describe the historical context surrounding documents 1 and 2
- Analyze **Document 2** and explain how *audience*, **or** *purpose*, **or** *bias*, **or** *point of view* affects this document's use as a reliable source of evidence

In developing your short-essay answer of two or three paragraphs, be sure to keep these explanations in mind:

Describe means “to illustrate something in words or tell about it.”

Historical Context refers to “the relevant historical circumstances surrounding or connecting the events, ideas, or developments in these documents.”

Analyze means “to examine a document and determine its elements and its relationships.”

Explain means “to make plain or understandable; to give reasons for or causes of; to show the logical development or relationship of.”

Reliability is determined by how accurate and useful the information found in a source is for a specific purpose.

SEQ Set 2 Directions (Question 30): Read and analyze the following documents before writing your short essay in the separate essay booklet.

Document 1

. . . It may well be that, in spite of our best efforts, the Communists may spread the war. But it would be wrong—tragically wrong—for us to take the initiative in extending the war.

The dangers are great. Make no mistake about it. Behind the North Koreans and Chinese Communists in the front lines stand additional millions of Chinese soldiers. And behind the Chinese stand the tanks, the planes, the submarines, the soldiers, and the scheming rulers of the Soviet Union.

Our aim is to avoid the spread of the conflict. . . .

I have thought long and hard about this question of extending the war in Asia. I have discussed it many times with the ablest military advisers in the country. I believe with all my heart that the course we are following is the best course.

I believe that we must try to limit the war to Korea for these vital reasons: to make sure that the precious lives of our fighting men are not wasted; to see that the security of our country and the free world is not needlessly jeopardized; and to prevent a third world war.

A number of events have made it evident that General [Douglas] MacArthur did not agree with that policy. I have therefore considered it essential to relieve General MacArthur so that there would be no doubt or confusion as to the real purpose and aim of our policy. . . .

Source: President Harry Truman, Radio Report to the American People on Korea and on U.S. Policy in the Far East, April 11, 1951

Document 2

. . . But once war is forced upon us, there is no other alternative than to apply every available means to bring it to a swift end.

War's very object is victory, not prolonged indecision.

In war there is no substitute for victory.

There are some who, for varying reasons, would appease Red China. They are blind to history's clear lesson, for history teaches with unmistakable emphasis that appeasement but begets new and bloodier war. It points to no single instance where this end has justified that means, where appeasement has led to more than a sham peace. Like blackmail, it lays the basis for new and successively greater demands until, as in blackmail, violence becomes the only other alternative.

"Why," my soldiers asked of me, "surrender military advantages to an enemy in the field?" I could not answer. . . .

Source: General Douglas MacArthur, Farewell Speech to Congress, April 19, 1951

SEQ Set 2 (Question 30)

Task: Based on your reading and analysis of these documents, apply your social studies knowledge and skills to write a short essay of two or three paragraphs in which you:

- Describe the historical context surrounding documents 1 and 2
- Analyze **Document 2** and explain how *audience*, **or** *purpose*, **or** *bias*, **or** *point of view* affects this document's use as a reliable source of evidence

Guidelines:

In your short essay, be sure to

- Develop all aspects of the task
- Incorporate relevant outside information
- Support the task with relevant facts and examples

You are *not* required to include a separate introduction or conclusion in your short essay of two or three paragraphs.

Part III

CIVIC LITERACY ESSAY (Questions 31–37)

This Civic Literacy Essay Question is based on the accompanying documents. The question is designed to test your ability to work with historical documents. Some of these documents have been edited for the purpose of this question. As you analyze the documents, take into account the source of each document and any point of view that may be presented in the document. Keep in mind that the language and images used in a document may reflect the historical context of the time in which it was created.

Historical Context: Civil Liberties During World War II—Japanese American Internment

Throughout United States history, many constitutional and civic issues have been debated by Americans. These debates have resulted in efforts by individuals, groups, and governments to address these issues. These efforts have achieved varying degrees of success. One of these constitutional and civic issues is *the restriction of Japanese American civil liberties during World War II*.

Task: Read and analyze the documents in Part A. Using information from the documents and your knowledge of United States history, answer the questions that follow each document in Part A. Your answers to the questions will help you write the Part B essay in which you will be asked to

- Describe the historical circumstances surrounding this constitutional or civic issue
- Explain efforts by individuals, groups, and/or governments to address this constitutional or civic issue
- Discuss the impact of the efforts on the United States and/or on American society

In developing your answers to Part III, be sure to keep these general definitions in mind:

- (a) **describe** means “to illustrate something in words or tell about it”
- (b) **explain** means “to make plain or understandable; to give reasons for or causes of; to show the logical development or relationships of”
- (c) **discuss** means “to make observations about something using facts, reasoning, and argument; to present in some detail”

Civic Literacy Essay

Part A

Short-Answer Questions (31–36)

Directions: Analyze the documents and answer the short-answer questions that follow each document in the space provided.

Document 1

Powerful and resourceful gangsters have banded together to make war upon the whole human race. Their challenge has now been flung at the United States of America. The Japanese have treacherously violated the long-standing peace between us. Many American soldiers and sailors have been killed by enemy action. American ships have been sunk; American airplanes have been destroyed. . . .

We are now in this war. We are all in it all the way. Every single man, woman, and child is a partner in the most tremendous undertaking of our American history. We must share together the bad news and the good news, the defeats and the victories—the changing fortunes of war.

So far, the news has been all bad. We have suffered a serious set-back in Hawaii. Our forces in the Philippines, which include the brave people of that Commonwealth, are taking punishment, but are defending themselves vigorously. The reports from Guam and Wake and Midway Islands are still confused, but we must be prepared for the announcement that all three outposts have been seized. . . .

Every citizen, in every walk of life, shares this same responsibility. The lives of our soldiers and sailors—the whole future of this nation—depend upon the manner in which each and every one of us fulfills his obligation to our country.

Source: President Franklin D. Roosevelt, Fireside Chat, December 9, 1941

- 31 According to President Franklin D. Roosevelt, what is **one** challenge facing the United States in December 1941? [1]

Score

**WESTERN DEFENSE COMMAND AND FOURTH ARMY
WARTIME CIVIL CONTROL ADMINISTRATION**

Presidio of San Francisco, California
April 1, 1942

**INSTRUCTIONS TO ALL PERSONS OF
JAPANESE
ANCESTRY**

Living in the Following Area:

All of San Diego County, California:

All Japanese persons, both alien and non-alien, will be evacuated from the above designated area by 12:00 o'clock noon Wednesday, April 8, 1942 . . .

The Following Instructions Must Be Observed:

1. A responsible member of each family, preferably the head of the family, or the person in whose name most of the property is held, and each individual living alone, will report to the Civil Control Station . . .
2. Evacuees must carry with them on departure for the Reception Center, the following property:
 - (a) Bedding and linens (no mattress) for each member of the family;
 - (b) Toilet articles for each member of the family;
 - (c) Extra clothing for each member of the family;
 - (d) Sufficient knives, forks, spoons, plates, bowls and cups for each member of the family;
 - (e) Essential personal effects for each member of the family....

Go to the Civil Control Station at 1919 India Street, San Diego, California, between 8:00 a.m. and 5:00 p.m., Thursday, April 2, 1942, or between 8:00 a.m. and 5:00 p.m., Friday, April 3, 1942, to receive further instructions.

J. L. DeWITT
Lieutenant General, U.S. Army
Commanding

Source: National Archives, adapted by *Newsweek*, 1991

Document 2b

This store was located in Oakland, California. The owner was a University of California graduate of Japanese descent. On December 8, the day after the attack on Pearl Harbor, he placed the “I AM AN AMERICAN” sign on the storefront. After evacuation orders were issued, the store was closed and eventually sold despite the owner’s declaration of loyalty.



Source: Dorothea Lange, War Relocation Authority, Courtesy of the National Archives

- 32 What do these documents demonstrate about the treatment of Japanese Americans during World War II? [1]

Score

Document 3a

Fred Korematsu, an American citizen, was born of Japanese parents in Oakland, California. He studied briefly at Los Angeles City College and then became a welder. He tried to join the navy, which rejected him for medical reasons.

Korematsu refused to report for relocation, and on May 30 local police arrested him. Although some of the internees he knew advised him against contesting relocation, he decided to mount a legal fight. He explained why:

Assembly Camps were for: Dangerous Enemy Aliens and Citizens; These camps have been definitely an imprisonment under armed guard with orders shoot to kill. In order to be imprisoned, these people should have been given a fair trial in order that they may defend their loyalty at court in a democratic way, but they were placed in imprisonment without any fair trial! Many Disloyal Germans and Italians were caught, but they were not all corralled under armed guard like the Japanese—is this a racial issue? If not, the Loyal Citizens want fair trial to prove their loyalty! Also their [sic] are many loyal aliens who can prove their loyalty to America, and they must be given fair trial and treatment! Fred Korematsu's Test Case may help.

Source: Stephen Breyer, *Making Our Democracy Work*, A Judge's View, Alfred A. Knopf, New York, 2010
(adapted)



Source: Franklin D. Roosevelt Presidential Library

Eleanor Roosevelt visited Gila River Internment Camp on April 23, 1943. She made the following remarks on April 26 to the *Los Angeles Times*:

... We have no common race in this country, but we have an ideal to which all of us are loyal: we cannot progress if we look down upon any group of people amongst us because of race or religion. Every citizen in this country has a right to our basic freedoms, to justice and to equality of opportunity. We retain the right to lead our individual lives as we please, but we can only do so if we grant to others the freedoms that we wish for ourselves.

Source: Introduction from Greg Robinson, Université du Québec À Montréal; Speech from: *Confinement and Ethnicity: An Overview of World War II Japanese American Relocation Sites*, by J. Burton, et al.

33 Based on these documents, what was **one** reason for opposition to the internment of Japanese Americans during World War II? [1]

Score

Document 4

The sweeping story of what happened to the American Japanese and the Caucasians who imprisoned them is not a series of isolated events, but a look into a dark side of the “American way.” The story goes back at least to the treatment of Native Americans, to the persecution of British loyalists after the American Revolution, to the enslavement of Africans in the New World, to the treatment of American Germans during World War I, to Jewish quotas and “Irish Need Not Apply,” to the excesses of official bodies such as the House Un-American Activities Committee. And, at least to me, it seems there is always the possibility of similar persecutions happening again if fear and hysteria overwhelm what Abraham Lincoln called “the better angels of our nature.” . . .

Then, partly because of the black civil rights and anti-Vietnam War protest movements in the 1960s and 1970s, young Japanese Americans began questioning their parents and grandparents about what happened to them in the 1940s. Soon enough, books and memoirs by American Japanese held in camps began to appear; many of them were striking works of literature, many privately published, many never published, and, significantly, a large number of them were books for children and young adults. Japanese American organizations were energized by the questions asked by the new generations; oral history projects were created, letters became public, small museums were opened, and activists lobbied for official apologies, financial redress [compensation], and the designation of some of the camp sites, like Manzanar, as national historical monuments. Government records of the evacuation began to be discovered or declassified. Soon academic tracts and legal texts were written focusing on the constitutionality (or unconstitutionality) of what happened during the war.

Source: Richard Reeves, *The Shocking Story of Japanese American Internment in World War II*, Holt and Company, New York, 2015

- 34 According to Richard Reeves, what is **one** effort by Japanese Americans to bring public attention to the history of their internment? [1]

Score

Document 5a

The Commission on Wartime Relocation and Internment of Civilians was established by Congress in 1980 to review the facts and circumstances surrounding President Franklin D. Roosevelt's Executive Order 9066, issued on February 19, 1942. This statement is part of the Commission's report.

. . . The promulgation [issuance] of Executive Order 9066 was not justified by military necessity, and the decisions which followed from it—detention, ending detention and ending exclusion—were not driven by analysis of military conditions. The broad historical causes which shaped these decisions were race prejudice, war hysteria and a failure of political leadership. Widespread ignorance of Japanese Americans contributed to a policy conceived in haste and executed in an atmosphere of fear and anger at Japan. A grave injustice was done to American citizens and resident aliens of Japanese ancestry who, without individual review or any probative [provable] evidence against them, were excluded, removed and detained by the United States during World War II.

Source: *Personal Justice Denied: Report of the Commission on Wartime Relocation and Internment of Civilians*, 1982

Document 5b

The Members of Congress and distinguished guests, my fellow Americans, we gather here today to right a grave wrong. More than 40 years ago, shortly after the bombing of Pearl Harbor, 120,000 persons of Japanese ancestry living in the United States were forcibly removed from their homes and placed in makeshift internment camps. This action was taken without trial, without jury. It was based solely on race, for these 120,000 were Americans of Japanese descent. . . .

The legislation that I am about to sign provides for a restitution payment to each of the 60,000 surviving Japanese-Americans of the 120,000 who were relocated or detained. Yet no payment can make up for those lost years. So, what is most important in this bill has less to do with property than with honor. For here we admit a wrong; here we reaffirm our commitment as a nation to equal justice under the law.

Source: President Ronald Reagan, Remarks on Signing the Bill Providing Restitution for the Wartime Internment of Japanese-American Civilians, August 10, 1988

- 35 Based on these documents, what is **one** result of the efforts to address the restriction of Japanese American civil liberties during World War II? [1]

Score

Document 6

The following is an excerpt from Fred Korematsu's daughter, Karen Korematsu, in response to the United States Supreme Court decision to uphold an executive order banning travel to the United States from predominantly Muslim countries.

In writing the decision, Chief Justice John G. Roberts Jr. mentioned the 1944 Korematsu ruling, which he believed to be wrong. Karen Korematsu believed that Roberts' opinion officially overruled the *Korematsu v. United States* decision.

On Tuesday, the Supreme Court got it partly right. After nearly 75 years, the court officially overruled *Korematsu v. United States*. In the majority decision, Chief Justice John G. Roberts Jr., citing language used in a dissent to the 1944 ruling, wrote that the court was taking “the opportunity to make express what is already obvious: Korematsu was gravely wrong the day it was decided, has been overruled in the court of history, and—to be clear—‘has no place in law under the Constitution.’” . . .

My father spent his life fighting for justice and educating people about the inhumanity of the Japanese-American incarceration, so that we would learn from our mistakes. Although he would be somewhat glad his case was finally overruled, he would be upset that it was cited while upholding discrimination against another marginalized group. The court's decision replaced one injustice with another nearly 75 years later.

My father would still say, “Stand up for what is right.”

Source: Karen Korematsu, “How the Supreme Court Replaced One Injustice With Another,”
New York Times, June 27, 2018

- 36 According to Karen Korematsu, what is **one** impact of Fred Korematsu's decision to challenge Japanese American internment? [1]

Score

Part B

Civic Literacy Essay Question (37)

Directions: Write a well-organized essay that includes an introduction, several paragraphs, and a conclusion. Use evidence from *at least four* documents in the body of the essay. Support your response with relevant facts, examples, and details. Include additional outside information.

Historical Context: Civil Liberties During World War II—Japanese American Internment

Throughout United States history, many constitutional and civic issues have been debated by Americans. These debates have resulted in efforts by individuals, groups, and governments to address these issues. These efforts have achieved varying degrees of success. One of these constitutional and civic issues is *the restriction of Japanese American civil liberties during World War II*.

Task: Using information from the documents and your knowledge of United States history, write an essay in which you

- Describe the historical circumstances surrounding this constitutional or civic issue
- Explain efforts by individuals, groups, and/or governments to address this constitutional or civic issue
- Discuss the impact of the efforts on the United States and/or on American society

Guidelines:

In your essay, be sure to

- Develop all aspects of the task
- Explain *at least two* efforts to address the issue
- Incorporate information from *at least four* documents
- Incorporate relevant outside information
- Support the theme with relevant facts, examples, and details
- Use a logical and clear plan of organization, including an introduction and a conclusion that are beyond a restatement of the theme

The State Education Department / The University of the State of New York
June 2024 Regents Examination in United States History and Government

Scoring Key: Part I (Multiple-Choice Questions)

Examination	Date	Question Number	Scoring Key	Question Type	Credit	Weight
United States History & Government	June '24	1	2	MC	1	1
United States History & Government	June '24	2	1	MC	1	1
United States History & Government	June '24	3	2	MC	1	1
United States History & Government	June '24	4	1	MC	1	1
United States History & Government	June '24	5	3	MC	1	1
United States History & Government	June '24	6	4	MC	1	1
United States History & Government	June '24	7	2	MC	1	1
United States History & Government	June '24	8	2	MC	1	1
United States History & Government	June '24	9	3	MC	1	1
United States History & Government	June '24	10	1	MC	1	1
United States History & Government	June '24	11	2	MC	1	1
United States History & Government	June '24	12	4	MC	1	1
United States History & Government	June '24	13	3	MC	1	1
United States History & Government	June '24	14	3	MC	1	1
United States History & Government	June '24	15	1	MC	1	1
United States History & Government	June '24	16	3	MC	1	1
United States History & Government	June '24	17	2	MC	1	1
United States History & Government	June '24	18	4	MC	1	1
United States History & Government	June '24	19	2	MC	1	1
United States History & Government	June '24	20	4	MC	1	1
United States History & Government	June '24	21	3	MC	1	1
United States History & Government	June '24	22	2	MC	1	1
United States History & Government	June '24	23	1	MC	1	1
United States History & Government	June '24	24	3	MC	1	1
United States History & Government	June '24	25	4	MC	1	1
United States History & Government	June '24	26	1	MC	1	1
United States History & Government	June '24	27	2	MC	1	1
United States History & Government	June '24	28	1	MC	1	1

MC = Multiple-choice question

June 2024 Regents Examination in United States History and Government

Scoring Key: Parts II, IIIA, and IIIB

Examination	Date	Question Number	Scoring Key	Question Type	Credit	Weight
United States History & Government	June '24	Part II: SEQ I - 29	-	ES	5	1
United States History & Government	June '24	Part II: SEQ II - 30	-	ES	5	1
United States History & Government	June '24	Part IIIA - 31	-	SCF	1	1
United States History & Government	June '24	Part IIIA - 32	-	SCF	1	1
United States History & Government	June '24	Part IIIA - 33	-	SCF	1	1
United States History & Government	June '24	Part IIIA - 34	-	SCF	1	1
United States History & Government	June '24	Part IIIA - 35	-	SCF	1	1
United States History & Government	June '24	Part IIIA - 36	-	SCF	1	1
United States History & Government	June '24	Part IIIB: CLE - 37 Essay	-	ES	5	3

SCF = Scaffold Question

ES = Essay

The chart for determining students' final examination scores for the **June 2024 Regents Examination in United States History and Government** will be posted on the Department's web site at <https://www.nysedregents.org/us-history-govt/> on the day of the examination. Conversion charts provided for the previous administrations of the United States History and Government examination must NOT be used to determine students' final scores for this administration.

June 2024 Regents Examination in United States History and Government
Test Questions by Key Idea

Question Number	Key Idea
1	11.1
2	11.2
3	11.2
4	11.3
5	11.3
6	11.4
7	11.4
8	11.4
9	11.4
10	11.5
11	11.5
12	11.2
13	11.6
14	11.6
15	11.6
16	11.5
17	11.5
18	11.6
19	11.6
20	11.2
21	CT
22	11.7
23	11.7
24	11.7
25	11.9
26	CT
27	CT
28	11.11
29- SEQ-1	11.10
30- SEQ-2	11.9
31- SCF- 1	11.8
32- SCF- 2a/2b	11.8
33- SCF- 3a/3b	11.8
34- SCF- 4	11.8
35- SCF- 5a/5b	11.8
36- SCF- 6	11.8
37- CLE	11.8

CT= Cross Topical: test items that cover more than one Key Idea

United States History and Government
Short-Essay Question Set 1 (Question 29)
June 2024

Read and analyze the following documents, applying your social studies knowledge and skills to write a short essay of two or three paragraphs in which you:

- Describe the historical context surrounding these documents
- Identify and explain the *relationship* between the events and/or ideas found in these documents (Cause and Effect, *or* Similarity/Difference, *or* Turning Point)

Document 1

. . . We consider the underlying fallacy of the plaintiff's [Homer Plessy] argument to consist in the assumption that the enforced separation of the two races stamps the colored race with a badge of inferiority. If this be so, it is not by reason of anything found in the act, but solely because the colored race chooses to put that construction upon it. . . . The argument also assumes that social prejudice may be overcome by legislation, and that equal rights cannot be secured to the Negro [African-American] except by an enforced commingling [blending] of the two races. We cannot accept this proposition. If the two races are to meet on terms of social equality, it must be the result of natural affinities [relationships], a mutual appreciation of each other's merits and a voluntary consent of individuals. . . .

Legislation is powerless to eradicate racial instincts or to abolish distinctions based upon physical differences, and the attempt to do so can only result in accentuating the difficulties of the present situation. If the civil and political right of both races be equal, one cannot be inferior to the other civilly or politically. If one race be inferior to the other socially, the Constitution of the United States cannot put them upon the same plane.

Source: Justice Henry Billings Brown, Majority Opinion in *Plessy v. Ferguson*, 1896

Document 2

. . . To separate them from others of a similar age and qualifications solely because of their race generates a feeling of inferiority as to their status in the community that may affect their hearts and minds in a way unlikely ever to be undone. The effect of this separation on their educational opportunities was well stated by a finding in the Kansas case by a court which nevertheless felt compelled to rule against the Negro [African-American] plaintiffs:

“Segregation of white and colored children in public schools has a detrimental effect upon the colored children. The impact is greater when it has the sanction of the law; for the policy of separating the races is usually interpreted as denoting the inferiority of the Negro group. A sense of inferiority affects the motivation of a child to learn. Segregation with the sanction of law, therefore, has a tendency to retard [restrict] the educational and mental development of Negro children and to deprive them of some of the benefits they would receive in a racially integrated school system.” . . .

Source: Chief Justice Earl Warren, Majority Opinion in *Brown v. Board of Education*, 1954

United States History and Government
Content-Specific Rubric
Short-Essay Question—Set 1 (Question 29)
June 2024

Scoring Notes:

1. This short-essay question has **two** components (describing the **historical context** surrounding these two documents and identifying and explaining the **relationship** between the events *and/or* ideas found in these documents).
2. The description of historical context and the relationship between the events and/or ideas may focus on immediate or long-term circumstances or on immediate or long-term effects.
3. Only **one** relationship between the events and/or ideas needs to be discussed; however, the response may refer to a second relationship as part of the discussion.
4. The relationship between events and/or ideas in the documents may be discussed from any perspective as long as the relationship is supported by relevant information.

Score of 5:

- Thoroughly develops **both** aspects of the task in depth by discussing the historical context surrounding these documents and explaining the relationship between the events and/or ideas found in these documents
- Is more analytical than descriptive (analyzes and/or evaluates information), e.g., (*Historical Context*: connects Jim Crow laws passed by predominantly white Southern legislatures after Reconstruction to second-class citizenship and separate facilities for African Americans; *Cause and Effect*: because Jim Crow segregation was upheld after the *Plessy* ruling, two unequal educational systems with harmful effects for African American children developed, leading the NAACP (National Association for the Advancement of Colored People) to challenge “separate but equal” public schools; *Similarities/Differences*: in both cases the constitutionality of whether separate but equal Jim Crow laws violated the 14th amendment was considered; in *Plessy v. Ferguson* the Supreme Court upheld “separate but equal” as it applied to public accommodations, however, in *Brown v. Board of Education of Topeka*, the court ruled that racial segregation of public schools violated the equal protection clause of 14th amendment because “separate but equal” had a detrimental effect on African American children)
- Integrates relevant outside information (See Outside Information chart)
- Supports the theme with many relevant facts and/or examples from the documents (See Key Ideas chart)

Score of 4:

- Develops **both** aspects of the task in depth *or* may do so somewhat unevenly by thoroughly developing *one* aspect of the task in depth while developing the other aspect of the task in *some* depth
- Is both descriptive and analytical (applies, analyzes, and/or evaluates information), e.g., (*Historical Context*: discusses that after Reconstruction, Southern states passed Jim Crow laws to segregate the races in public facilities, which lasted for more than 50 years; *Cause and Effect*: discusses how the Supreme Court’s decision upholding Jim Crow laws in *Plessy* forced African American children to attend separate, unequal schools, leading to legal challenges during the civil rights movement to end the policy; *Similarities/Differences*: discusses how both cases ruled on the legality of racial segregation, but *Plessy v. Ferguson* argued that enforced segregation did not make one race inferior while *Brown v. Board of Education of Topeka* ruled that “separate but equal” schools were unconstitutional because they made African American children feel inferior)
- Includes relevant outside information
- Supports the theme with relevant facts and/or examples from the documents

Score of 3:

- Develops **both** aspects of the task in some depth
- Is more descriptive than analytical (applies and may analyze information)
- Includes some relevant outside information
- Includes some relevant facts and/or examples from the documents; may include some minor inaccuracies

Note: If only **one** aspect of the task is thoroughly developed in depth and if the response meets **most** of the other Level 5 criteria, the response may be a Level 3 paper.

Score of 2:

- Minimally develops **both** aspects of the task *or* develops **one** aspect of the task in some depth
- Is primarily descriptive; may include faulty analysis
- Includes little relevant outside information
- Includes a few relevant facts and/or examples from the documents; may include some inaccuracies

Score of 1:

- Minimally addresses the task
- Is descriptive; may lack understanding or application
- Includes minimal or no relevant outside information
- Includes a few relevant facts and/or examples from the documents; may make only vague, unclear references to the documents; may include inaccuracies

Score of 0:

Fails to develop the task; *OR* includes no relevant facts or examples; *OR* includes only entire documents copied from the test booklet; *OR* is illegible; *OR* is a blank paper

All sample student essays in this rating guide are presented in the same cursive font while preserving actual student work, including errors. This will ensure that the sample essays are easier for raters to read and use as scoring aids.

Raters should continue to disregard the quality of a student’s handwriting in scoring examination papers and focus on how well the student has accomplished the task. The content-specific rubric should be applied holistically in determining the level of a student’s response.

Key Ideas from the Documents

Document 1—Justice Brown wrote majority opinion Enforced separation does not create badge of inferiority Legislation powerless to eradicate social instincts based on physical differences Constitution cannot create equality	Document 2—Chief Justice Earl Warren wrote majority opinion Separation of children causes badge of inferiority, harms motivation of child to learn, has detrimental effect on minority Segregated schools deprive minority children of benefits they would receive in racially integrated schools
--	---

Relevant Outside Information (This list is not all-inclusive.)

14th amendment End of Reconstruction in South/whites regain control of Southern legislatures Jim Crow laws “Whites only” signs “Separate but equal” Separate but inferior bathrooms/drinking fountains/hospitals/schools Louisiana railroad cars Plessy one-eighth black Harlan’s dissent Activist court Thurgood Marshall and NAACP Unanimous decision in <i>Brown</i> <i>Brown</i> challenged separate but equal doctrine of <i>Plessy</i> “All deliberate speed” Little Rock Nine civil rights movement 1964 Civil Rights Act

Relationship between the Documents (This list is not all-inclusive.)

Cause and Effect: Because of Jim Crow segregation laws after the <i>Plessy</i> ruling, African American children attended separate and unequal public schools, leading the NAACP to challenge the precedent of “separate but equal.”	Similarities/Differences: Both cases judged the constitutionality of segregation in public facilities according to the equal protection clause of the 14th amendment, but <i>Plessy v. Ferguson</i> established the doctrine of “separate but equal,” while <i>Brown v. Board of Education of Topeka</i> countered the <i>Plessy</i> view, because segregated public schools made African American children feel inferior.	Turning Point: Chief Justice Warren’s majority opinion declaring racial segregation in public schools to be unconstitutional was used to inspire and challenge other forms of segregation and became a catalyst for a powerful, broad-based civil rights movement.
--	--	--

The Plessy v. Ferguson and Brown v. Board of Education Supreme Court cases both address an issue of controversy that persisted for almost a century following Reconstruction, which is the forced racial segregation of black and white Americans. The Plessy v. Ferguson case of 1896 took place when Homer Plessy, who was partially black, refused to sit in the segregated part of the train, because he felt that he deserved to be treated equally by not being forced into a separate compartment as white men. When he took his argument to the Supreme Court, demanding equal treatment granted by the 14th amendment, the court established the doctrine of separate but equal: "If one race be inferior to the other socially, the Constitution of the United States cannot put them upon the same plane" (Document 1), as stated by Justice Henry Billings Brown. The final decision was a loss for the hopeful African Americans, since social prejudice was deemed impossible to overcome by law, so Jim Crow segregation would remain in place. Unfortunately, African Americans would thus stay segregated, contributing to their feeling of inferiority as second class citizens who received unequal treatment.

Particularly because of disappointing cases such as Plessy, the Brown v. Board of Education case of 1954 was a momentous victory for the African American civil rights cause. The case was debated over the right of a black school girl to study at a white institution. Chief Justice Earl Warren declared that segregation did in fact contribute to a feeling of inferiority unlike what was decided in the Plessy v Ferguson case, and that this feeling of inferiority had a "detrimental effect upon the colored children" (Doc 2) and their ability to learn.

In conclusion, the Brown v. Board of Education was a hugely

significant milestone in the African Americans' push for equal rights by unanimously overturning the policy of separate but equal segregation that allowed undeserved unequal treatment to citizens who were supposedly equal under the Constitution. The decision in *Brown* led to the passage of the sweeping 1964 Civil Rights Act and an end to de jure segregation in the United States.

Set 1, Anchor Level 5

The response:

- Thoroughly develops **both** aspects of the task in depth
- Is more analytical than descriptive (*Historical Context*: both court cases address an issue of controversy that persisted for almost a century after Reconstruction, which is the forced racial segregation of black and white Americans; *Plessy* took his argument to the Supreme Court, demanding equal treatment granted by the 14th amendment; the Court established the doctrine of separate but equal; the final decision was a loss for the hopeful African-Americans since social injustice was impossible to overcome by law, so Jim Crow segregation would remain in place; *Turning Point*: *Brown v. Board of Education* was hugely significant milestone in the African Americans' push for equal rights by unanimously overturning the policy of separate but equal that allowed undeserved, unequal treatment; the decision in *Brown* led to the passage of the sweeping 1964 Civil Rights Act and an end to de jure segregation in the United States)
- Includes relevant outside information (Reconstruction; partially black; segregated train car; 14th amendment; separate but equal; Jim Crow segregation; *Plessy* contributed to feelings of being second-class citizens; black school girl, white institution; unanimously overturning *Plessy*; 1964 Civil Rights Act; de jure segregation)
- Supports the theme with many relevant facts and/or examples from the documents (*Document 1*: the Constitution cannot put the races on the same plane; social prejudice was impossible to overcome by law; *Document 2*: segregation contributed to a feeling of inferiority, detrimental effect upon the colored children and their ability to learn)

Conclusion: Overall, the response fits the criteria for Level 5. The response clearly recognizes that the overturning of *Plessy* by *Brown v. Board of Education* was a critical milestone/turning point in the advancement of civil rights for African Americans. The discussion includes plentiful analysis and outside information.

Slavery had been a huge problem in the United States before Abraham Lincoln and the Civil War when blacks were finally set free ... or so they thought. In Documents 1 and 2, both excerpts describe the court cases surrounding the racial injustice during the late 1800s to the middle 1900s. Blacks/Negroes were treated unfairly as opposed to whites, in which they were not allowed to associate with them at all. This was known as segregation, where “colored” people were forced to use inferior facilities compared to whites, and were completely ridiculed. Although both documents talk about the segregation of African Americans, the cases had completely different outcomes.

The case of Plessy v. Ferguson was about a mixed race person who was denied a seat on a “whites only” train car in the south. After Plessy refused to move his seat (sit in the “colored” train car), a case was eventually brought before the supreme court about the social injustices of segregation. The decision made by the court was in favor of “separate but equal” facilities. The Court believed that legislation was “powerless to eradicate racial instincts or to abolish distinctions based on physical difference.” Blacks continued to suffer after this decision by being denied access to white schools, bathrooms, water fountains, etc. They were also constantly threatened, especially by the Ku Klux Klan. It wasn’t until 1954 when a huge change occurred.

Document 2 is about the Brown v. Board case occurring almost 60 years later after Plessy v. Ferguson. The decision made by the court was in favor of the African Americans. Previously, many—if not all—white schools banned the allowance of Negroes into their public school systems. However, in Brown v. Board, it was pointed out that segregation had “a detrimental effect” upon colored children. The

difference in black and white school systems was immense. In *Brown v. Board* the court finally did acknowledge the injustices of segregation unlike Document 1. Black children were now allowed to enroll into white schools as a result of the case.

Both Documents 1 and 2 introduced themes on racial injustice and prejudice. Although both documents talk about the segregation of African Americans, both cases had completely different outcomes. The Civil Rights Movement played a huge factor in the case because the court finally did acknowledge the injustices of segregation. The public also reacted differently as well. As you might expect after *Plessy* many blacks were enraged by the continuation of segregation, but after *Brown* many whites were enraged and even resorted to violence toward black children. For example, the Little Rock Nine and Ruby Bridges were examples in which blacks were harassed and needed bodyguards to protect them. Although change was occurring, the actions from some whites were still aggressive.

Ultimately, Documents 1 and 2 provide an in-depth look to the racial injustices between whites and blacks in the United States. However, court cases were not the only things that helped the Civil Rights Movement. Many leaders helped as well; such as MLK and Malcolm X, etc. Nowadays, things are still changing, but it has improved greatly from the times of slavery.

Set 1, Anchor Level 4

The response:

- Develops *both* aspects of the task in depth
- Is both descriptive and analytical (*Historical Context*: segregation laws forced “colored” people to use inferior facilities compared with whites; blacks continued to suffer after the *Plessy* decision by being denied access to white schools, bathrooms, water fountains, etc.; *Difference*: *Plessy v. Ferguson* ruled that “separate but equal” was constitutional while in *Brown v. Board of Education* the court finally did acknowledge the injustices of segregation; after *Plessy*, many blacks were enraged about the continuation of segregation, but after *Brown*, many whites were enraged and even resorted to violence toward black children) includes an inaccuracy: (blacks were not allowed to associate with whites at all)
- Includes relevant outside information (slavery, Civil War; strictly separated; denied access to white schools, bathrooms, water fountains; Ku Klux Klan; black and white school systems; civil rights movement; separate but equal; Little Rock Nine; Ruby Bridges; MLK; Malcolm X)
- Supports the theme with relevant facts and/or examples from the documents (*Document 1*: legislation was powerless to eradicate social instincts or abolish physical distinctions; *Document 2*: almost 60 years later segregation had a “detrimental effect upon the colored children”)

Conclusion: Overall, the response meets the criteria for Level 4. The response describes the important differences between the majority opinions in the documents and the public reactions to the Supreme Court decision. However, the historical context is much weaker than the discussion of the relationship between the documents.

Document 1 and 2 are both excerpts from two of the most important Supreme Court cases concerning race. Document 1 is an excerpt from *Plessy v. Ferguson* which legalized the principle that blacks were indeed inferior to whites. Document 1 states, "If one race be inferior to the other socially, the Constitution of the United States cannot put them upon the same plane." This statement shows that the Supreme Court for that time believed that blacks were not subjected to the same rights as whites under the Constitution. This case excerpt also expresses that no legislation can grant equality to blacks. They believe that the people have to accept each other as equal and only as a result of this "natural affinity" can both races be treated as one and the same under the law. During the time of this court case, the North had won the Civil War and the idea that blacks were equal to whites was rare. Although blacks were free during this time they still were not accepted by the entire country as free people. The other excerpt is from the *Brown vs Board of Education* case. The *Brown vs Board of Education* court case basically overturned the *Plessy vs Ferguson* decision. *Brown vs Board of Education* was another fight concerning racial segregation that fought for black children to be able to attend public school with white children. This court decision directly contradicted the "separate but equal" idea and argued that segregating school children was having, "a detrimental effect upon the colored children." The time period of this court case was completely different than the *Plessy vs Ferguson* case. The *Brown vs Board of Education* case was fought in a post-World War II America. During World War II, African-Americans were generally more accepted as equals in American society because of the need for them to either fight in the war or to help out with jobs at home. So, it was easier to

argue that blacks should be treated equally because at this point of time it was a more accepted idea. But there was still much discrimination.

The contrast between the Plessy vs Ferguson case and the Brown vs Board of Education case displays the great advancement of black rights from the post-Civil War era to the post-World War II era.

Set 1, Anchor Level 3

The response:

- Develops *both* aspects of the task in some depth
- Is primarily descriptive (*Historical Context*: Although blacks were free during this time, they were still not accepted by the entire country as free people; *Brown v. Board of Education* was another fight concerning racial segregation that fought for black children to be able to attend public school with white children; *Difference*: the *Plessy v. Ferguson* case stated that “if one race be inferior to the other socially, the Constitution of the United States cannot put them on the same plane; court case decision directly contradicted the “separate but equal” idea and argued that segregating schoolchildren was having “a detrimental effect upon the colored children”)
- Includes some relevant outside information (the North had won the Civil War; blacks were not accepted as free people; *Brown v. Board of Education* overturned *Plessy v. Ferguson*; post World War II; need for blacks to fight in the war)
- Includes some relevant facts and/or examples from the documents (*Document 1*: the Constitution cannot put them on the same plane; no legislation can grant equality to blacks; only as a result of this natural affinity can both races be treated as one; *Document 2*: segregating schoolchildren was having a detrimental effect on the colored children)

Conclusion: Overall, the response meets the criteria for Level 3. The response shows good understanding of the task and the documents. It lacks sufficient discussion of the historical context of the cases and the level of analysis seen in a higher level response.

The documents refer to segregation, with the first document about the Plessy v. Ferguson case leading to the 'separate but equal' law, and the second document about the Brown v. Board of Education case leading to the overruling of the 'separate but equal' law. The first document talks about the support for the segregation; the second document talks about the negative effects of segregation.

The first document talks about having segregation be okay because any sense of inferiority is placed by the Negroes, and that "it is not by reason of anything found in the act, but solely because the colored race chooses to put that construction upon it." Segregation was mentioned to be done because there shouldn't be any problem with it, and if there are any problems, "if one race be inferior to the other socially, the Constitution of the United States cannot put them upon the same plane."

The second document talks about the negative effects of segregation, and refers to the decision made in the first document to be inherently incorrect. The issues that were brushed away in the first document are revisited, saying that having segregation of Negroes "from others of a similar age and qualifications solely because of their race generates a feeling of inferiority." The effects are listed among others, and has shown inferiority to be an inferred problem with segregation. "The impact is greater when it has the sanction of the law...". Having government enforce the segregation laws only cause more problems.

The legality of segregation is the primary issue in the two documents. The first allows segregation, giving reasons as to how it should be okay. The second goes back on the first saying that the segregation is bad especially when it applies to education.

Set 1, Anchor Level 2

The response:

- Develops one aspect of the task is some depth
- Is primarily descriptive (*Difference*: the first document talks about segregation being okay because any sense of inferiority is placed by the Negroes, and that it is not by reason of anything in the act, “if one race be inferior to the other, the Constitution of the United States cannot put them on the same plane”; the second document talks about the negative effects of segregation and refers to the decision made in the first document to be inherently incorrect; the issues that were brushed away in the first document are revisited, saying that having segregation of the Negroes “from others of a similar age and qualifications solely because of their race generates a feeling of inferiority”)
- Includes little relevant outside information (the overruling of the “separate but equal” law)
- Includes a few relevant facts and/or examples from the documents (*Document 1*: segregation is okay; any sense of inferiority is because the colored race put that construction upon it; the Constitution of the United States cannot put them on the same plane; *Document 2*: segregation from others of a similar age generates a feeling of inferiority; the impact is greater when it has the sanction of the law)

Conclusion: Overall, the response meets the criteria for Level 2. The response shows understanding of the difference between the documents but omits any discussion of the historical context, making it primarily a survey of document information.

Both of these documents are court cases, in which they address the struggle for equality of all men. In the first document, it is a court case of Plessy v. Ferguson. Plessy v. Ferguson began when a white-colored man with a small percentage of African heritage decided to board a train cart designed for white men of white heritage. After a short scuffle, Mr. Plessy was found to have African heritage in his blood and shortly after was arrested for “breaking the law.” This case brought light to many problems at the time, especially discrimination and segregation. People began to wonder how extreme the white man was towards African Americans, where a man with a small percentage of African heritage was considered black. This case also shed light to the growing problem of segregation, where although “black people” were officially “free”, they still had to struggle against the superior white man. This court case would eventually lead to other attempts of fighting segregation, like Brown v. Board of Education and many more. Although both cases were totally different, they brought attention to the same thing and that was equal rights of everyone.

Set 1, Anchor Level 1

The response:

- Minimally addresses the task
- Is primarily descriptive (*Historical Context*: a white-colored man with a small percentage of African heritage decided to board a train car designed for white men of white heritage; although “black people” were officially “free,” they still had to struggle against the superior white man)
- Includes little relevant outside information (board a train car designed for white men; many lawsuits)
- Includes no relevant facts and/or examples from the documents

Conclusion: Overall, the response meets the criteria for Level 1. The response recognizes that both cases focus on issues of equality between racial groups, but includes almost no historical context. The response states that both cases were totally different, but neither the documents nor outside information is employed as supporting information.

Document 1 is from the ruling of the Supreme Court in the controversial 1896 case *Plessy v. Ferguson*. Although African Americans had been freed from slavery by the 13th Amendment at the end of the Civil War, they still experienced racism and segregation, especially in the South. In *Plessy v. Ferguson*, the Supreme Court ruled against African American Homer Plessy's claim that enforced segregation leads to a state of inferiority for colored people because legislation cannot eliminate racism. The Supreme Court upheld a policy of "separate but equal," where whites and blacks could be segregated as long as they had equal facilities.

This ruling was completely reversed in the Supreme Court decision in the 1954 *Brown v. Board of Ed.* The 1950's were the beginning of an era of rebellion (1960's counterculture), as well as the beginning of the Civil Rights Movement, which fought for an end to segregation and equal rights for African Americans. In *Brown v. Board of Ed.*, the Supreme Court overturned the 1896 *Plessy v. Ferguson* "separate but equal" policy, and stated that segregation was unjust and led to a sense of inferiority for African American children. Linda Brown's parents had sued the Topeka (Kansas) Board of Education after Linda was forced to attend a black school much farther away than a closer all white school. Many other families joined in the case, and it was called *Brown vs. Board of Education*. The case was eventually brought to the Supreme Court which ruled that segregation based on "separate but equal" was unjust and ordered the desegregation of schools. Many whites, especially southerners would resist this order, such as at Little Rock Central High School in 1959, where Arkansas governor Orval Faubus called in the state National Guard to prevent 9 African

Short-Essay Question, Set 1—Practice Paper – A

American students from entering an all-white school.

The ideas presented in Doc 2 are in stark contrast to the ones in Doc 1, even though it was only 50 years later, and it represents the changing society during this era. Document 1 upholds segregation as “separate but equal,” while Document 2 states that “separate but equal” is unjust and order the gradual desegregation of schools.

After the Civil War, slaves were freed by the 13th Amendment, granted citizenship in the 14th, and the right to vote in the 15th Amendment. However, racism and social inequality continued.

In 1896, there was a Supreme Court case, *Plessy v. Ferguson* which stated that segregation between whites and blacks was okay as long as both were equal. The court believed that, "Legislation is powerless to eradicate social instincts or to abolish distinctions based upon physical differences..." The Supreme Court said that there was nothing they could do politically to end racism. The Jim Crow policy continued.

However, almost a decade after the Second World War, the mood of the country had shifted. In *Brown v. Board of Education*, the Supreme Court said that "for the policy of separating the races is usually interpreted as denoting the inferiority of the Negro Group." In this case, the Supreme Court realized that segregation was in fact not equal. It overturned *Plessy v. Ferguson* and although it only desegregated public schools, it led to other public places to become desegregated as well. It became a turning point for a civil rights movement in the 1960s.

Supreme Court cases *Plessy v. Ferguson* and *Brown v. Board of Education* shows how the beliefs and morals of the United States changes over time.

The historical context surrounding these documents is from the 1800's to the 1900's, where African Americans were fighting for equal rights in the United States. The relationship between the two events is they are both court cases taken to the supreme court. Although they were during different years, it still address the issue of segregation and African Americans fighting for equal rights as white people during this time.

Because of these court cases it caused the civil rights movement for equal rights. It also lead presidents like Lyndon B Johnson or John F. Kennedy to participate in the civil rights movement and help gain equal rights.

In United States history, the supreme court has released many different decisions in regards to multiple, controversial issues. One of the largest of these issues includes the Civil Rights of African-Americans. The supreme court case of Plessy v. Ferguson restricted African-American Rights, as did previous decisions of the past. However, the 1954 case of Brown v. the Board of Education proved to be a turning point for this issue.

In 1896, Homer Plessy (who was 1/8 black,) boarded a train in Louisiana. Plessy deliberately sat in the whites-only section of the train car (to protest a new Jim Crow segregation act for Louisiana rail cars.) Plessy was arrested for this action, and fought against this in court by stating that this arrest (and the law,) was a violation of the 14th Amendment. He took his case to Judge Ferguson, who ruled against him. This case was appealed multiple times until it reached the Supreme court. In 1896, Justice Brown stated in the majority opinion of Plessy v. Ferguson (Doc 2,) that segregation is legal in public facilities, as long as they provided equal treatment for both races. This policy of "separate but equal" applied to all public facilities. It upheld a system like "apartheid" that dominated the social lives of African-Americans and claimed that legislation could not end prejudice. According to Justice Brown the Constitution could not make the races socially equal. A backlash from the African-American community arose as this deprived them of their own rights.

Following World War II, minorities began to demand equality and the modern Civil Rights movement began. Mr. Brown wanted to send his daughter to a school nearby, but, it was for whites-only. Therefore, with the help of the NAACP, he filed a case against the Kansas

Board of Education, and it got appealed up to the Supreme Court. In 1959, Justice Warren stated in the unanimous opinion of *Brown v. Board of Education* (Doc 2.) that segregation in public schools was unconstitutional, as it left African American children with feelings of inferiority that could never be undone. The effects of segregation on children was even worse when sanctioned by law. This case was a major win for the African-American community, as this was seen as the government finally giving them more Civil Rights.

The case *Plessy v. Ferguson* and those like it deprived African-Americans of their civil rights with the sanction of law. *Brown v. Board of Education* proves to be a major turning point by directly overturning *Plessy v. Ferguson*. This decision clearly paved the way for more federal action on Civil Rights.

Racial inequality has been an issue that has plagued the history of the U.S. for centuries. In the two documents, supreme court justices give their opinions on the debate of racial segregation after monumental Supreme Court cases such as Plessy v. Ferguson and Brown v. Board of Education. These cases, roughly 60 years apart, show how these turning points reflect the different and evolved views at the time.

After Plessy v. Ferguson, the term “separate but equal” was coined, and it upheld the racist views of Southern America. In 1896, Homer Plessy argued that segregation was unconstitutional and implies that black people are inferior to whites. The supreme court ruled against Plessy, and Justice Henry Billings Brown wrote the majority opinion. It was a turning point in American history and reflected the idea that legislation cannot change people’s moral values.

Brown v. Board of Education overturned Plessy v. Ferguson and reflected a more progressive and equal America. In 1954, the supreme court declared the segregation, specifically in the education system, was unconstitutional and that “separate but equal” is not possible. This took place around the time period where the Civil Rights Movement was starting to burst and more African Americans were demanding fair treatment. Doc 2 shows the different way of thinking in America during the 1950s that wasn’t as popular during the 1890’s, which is discussed in Doc. 1.

Both Doc. 1 and 2 discuss major turning points that have affected African Americans. However, Doc. 2 captures the progressive views that evolved in America 60 years after Plessy v. Ferguson.

Set 1, Practice Paper A—Score Level 4

The response:

- Develops **both** aspects of the task in depth
- Is both descriptive and analytical (*Historical Context*: although African Americans had been freed from slavery by the 13th amendment at the end of the Civil War, they still experienced racism and segregation, especially in the South; the 1950s was the beginning of an era of rebellion (1960s counterculture), as well as the beginning of the civil rights movement; *Differences*: in *Brown v. Board of Education*, the Supreme Court overturned the 1896 *Plessy v. Ferguson* “separate but equal” policy, and stated that segregation was unjust and led to a sense of inferiority for African American children; the ideas presented in Document 2 are in stark contrast to the ideas in Document 1 even though it was only 50 years later; it represents the changing society during this era)
- Includes relevant outside information (13th amendment; end of the Civil War; “separate but equal,” civil rights movement; overturned *Plessy v. Ferguson*; Linda Brown forced to attend an all black school; Little Rock Central High School; Arkansas Governor Orval Faubus; nine African American students) includes a minor inaccuracy (at Little Rock Central High School in 1959)
- Supports the theme with relevant facts and/or examples from the documents (*Document 1*: legislation cannot eradicate racism, restricts the education of African American children; *Document 2*: segregation was unjust and led to a feeling of inferiority for African American children)

Conclusion: Overall, the response meets the criteria for Level 4. The response clearly states the difference between the two cases on the issue of segregation. However, it fails to reach the level of a 5 paper because the discussion of the historical context is limited.

Set 1, Practice Paper B—Score Level 3

The response:

- Develops **both** aspects of the task in some depth
- Is more descriptive than analytical (*Historical Context*: after the Civil War, slaves were freed by the 13th amendment, granted citizenship in the 14th, and given the right to vote in the 15th amendment, however, racism and inequality continued; *Differences*: the Supreme Court said that there was nothing they could do politically to end racism; in this case, the Supreme Court realized that segregation was in fact not equal; *Turning Point*: *Brown v. Board of Education* became a turning point for a civil rights movement in the 1960s)
- Includes some relevant outside information (13th, 14th, 15th amendments; a decade after the Civil War; Jim Crow; overturned *Plessy v. Ferguson*; other public places desegregated; civil rights movement in the 1960s)
- Includes some relevant facts and/or examples from the documents (*Document 1*: Legislation is powerless to eradicate social instincts or to abolish distinctions based upon physical differences; nothing could be done politically to end racism; *Document 2*: the policy of separating the races is usually interpreted as denoting the inferiority of African Americans)

Conclusion: Overall, the response meets the criteria for Level 3. The response uses clear and concise wording to address the task. The response recognizes the fact that beliefs and morals may change over time, especially about the negative impact of segregation on African Americans. However, it lacks the analysis and depth of a higher level response.

Set 1, Practice Paper C—Score Level 1

The response:

- Minimally addresses the task
- Is descriptive (*Historical Context*: African Americans were fighting for equal rights in the United States; *Similarity*: although they were in different years, they still addressed the issue of segregation and African Americans fighting for equal rights)
- Includes minimal outside information (fighting for equal rights; Presidents like Lyndon B. Johnson or John F. Kennedy)
- Includes almost no relevant facts and/or examples from the documents (taken to the Supreme Court; issue of segregation)

Conclusion: Overall, the response meets the criteria for Level 1. The response mentions that the documents are both Supreme Court cases regarding the issue of segregation and that African Americans fight for equal rights without any further elaborations.

Set 1, Practice Paper D—Score Level 5

The response:

- Thoroughly develops *both* aspects of the task in depth
- Is more analytical than descriptive (*Historical Context*: Plessy deliberately sat in the whites-only section of the train car to protest a new Jim Crow segregation act for Louisiana rail cars; “separate but equal” upheld a system like apartheid that dominated the social lives of African Americans; the *Plessy* ruling claimed that legislation could not end prejudice; *Turning Point*: *Brown v. Board of Education* proved to be a major turning point by directly overturning *Plessy v. Ferguson*; segregation in public schools was unconstitutional as it left African American children with feelings of inferiority that could never be undone)
- Integrates relevant outside information (1/8 black; train car in Louisiana, whites-only section; Jim Crow segregation act; 14th amendment; “separate but equal”; “apartheid”; following World War II; NAACP; unanimous opinions; segregation in schools was unconstitutional)
- Supports the theme with many relevant facts and/or examples from the documents (*Document 1*: claimed that legislation could not end prejudice; *Document 2*: left African American children with feelings of inferiority that could never be undone)

Conclusion: Overall, the response fits the criteria for Level 5. The response uses insightful analysis and concise wording to describe the policy of Jim Crow in the *Plessy* decision and how the *Brown* decision was a turning point because it reversed that policy.

Set 1, Practice Paper E—Score Level 2

The response:

- Minimally develops **both** aspects of the task
- Is more descriptive than analytical (*Historical Context*: racial inequality has been an issue that has plagued the U.S. for centuries; in the two documents Supreme Court justices give their opinions on the debate of racial segregation) includes faulty analysis: (*Turning Point*: *Plessy v. Ferguson* upheld the racist views of Southern America; it was a turning point in American history and reflected the idea that legislation cannot change people’s moral values; both documents 1 and 2 discuss major turning points that have affected African Americans)
- Includes little relevant outside information (“separate but equal”; *Brown v. Board of Education* overturned *Plessy v. Ferguson*; civil rights movement)
- Includes a few relevant facts and/or examples from the documents (*Document 1*: the Supreme Court ruled against *Plessy*, Justice Henry Billings Brown wrote the majority opinion; reflected the idea that legislation cannot change people’s moral values; *Document 2*: education system; “separate but equal” is not possible)

Conclusion: Overall, the response meets the criteria for Level 2. The response lacks understanding of the term “turning point” listed in the task by labeling *Plessy v. Ferguson* as a turning point when it had clearly been described as maintaining the status quo.

United States History and Government
Short-Essay Question Set 2 (Question 30)
June 2024

Task: Read and analyze the following documents, applying your social studies knowledge and skills to write a short essay of two or three paragraphs in which you:

- Describe the historical context surrounding documents 1 and 2
- Analyze **Document 2** and explain how *audience*, *or purpose*, *or bias*, *or point of view* affects this document’s use as a reliable source of evidence

Document 1

. . . It may well be that, in spite of our best efforts, the Communists may spread the war. But it would be wrong—tragically wrong—for us to take the initiative in extending the war.

The dangers are great. Make no mistake about it. Behind the North Koreans and Chinese Communists in the front lines stand additional millions of Chinese soldiers. And behind the Chinese stand the tanks, the planes, the submarines, the soldiers, and the scheming rulers of the Soviet Union.

Our aim is to avoid the spread of the conflict. . . .

I have thought long and hard about this question of extending the war in Asia. I have discussed it many times with the ablest military advisers in the country. I believe with all my heart that the course we are following is the best course.

I believe that we must try to limit the war to Korea for these vital reasons: to make sure that the precious lives of our fighting men are not wasted; to see that the security of our country and the free world is not needlessly jeopardized; and to prevent a third world war.

A number of events have made it evident that General [Douglas] MacArthur did not agree with that policy. I have therefore considered it essential to relieve General MacArthur so that there would be no doubt or confusion as to the real purpose and aim of our policy. . . .

Source: President Harry Truman, Radio Report to the American People on Korea and on U.S. Policy in the Far East, April 11, 1951

Document 2

. . . But once war is forced upon us, there is no other alternative than to apply every available means to bring it to a swift end.

War’s very object is victory, not prolonged indecision.

In war there is no substitute for victory.

There are some who, for varying reasons, would appease Red China. They are blind to history’s clear lesson, for history teaches with unmistakable emphasis that appeasement but begets new and bloodier war. It points to no single instance where this end has justified that means, where appeasement has led to more than a sham peace. Like blackmail, it lays the basis for new and successively greater demands until, as in blackmail, violence becomes the only other alternative.

“Why,” my soldiers asked of me, “surrender military advantages to an enemy in the field?” I could not answer. . . .

Source: General Douglas MacArthur, Farewell Speech to Congress, April 19, 1951

United States History and Government
Content-Specific Rubric
Short Essay Question Set 2 (Question 30)
June 2024

Scoring Notes:

1. This short essay question has **two** components (describing the **historical context** surrounding these two documents and analyzing and explaining how *audience, or purpose, or bias, or point of view* affects the use of **Document 2** as a reliable source of evidence).
2. The description of historical context of both documents may focus on immediate or long-term circumstances or on immediate or long-term effects.
3. The discussion of reliability must focus on **Document 2** although information from Document 1 may be included in the discussion.
4. The analysis of reliability of **Document 2** may be considered from any perspective as long as it is supported by relevant information.

Score of 5:

- Thoroughly develops **both** aspects of the task in depth by discussing the historical context surrounding these documents and explaining how *audience, or purpose, or bias, or point of view* affects the use of **Document 2** as a reliable source of evidence
- Is more analytical than descriptive (analyzes and/or evaluates information), e.g., (*Historical Context*: discusses how President Harry Truman’s Cold War goal of containing communism in a limited war led to his decision to relieve General MacArthur of his command in Korea; *Point of View*: explains how MacArthur’s speech fails to address the wider considerations discussed by President Truman, such as the economic, human, and international costs of an incursion into China, which makes the document less reliable on the issue of war policy in Korea; *Bias*: as a career military leader and highly decorated World War II hero, General MacArthur’s speech is unreliable because it fails to respect the important precedent of civilian control of the military)
- Integrates relevant outside information (See Outside Information chart)
- Supports the theme with many relevant facts and/or examples from the documents (See Key Ideas chart)

Score of 4:

- Develops **both** aspects of the task in depth
- Is both descriptive and analytical (applies, analyzes and/or evaluates information), e.g., (*Historical Context*: describes how President Truman’s Cold War policy of containment in Korea without expanding the war into the rest of Asia led to his firing of General MacArthur; *Point of View*: as a military man, MacArthur’s speech about the need to expand the fight into China ignores the problems that widening the war will cause, making his words less reliable; *Bias*: General MacArthur’s life-long military career and World War II victories make his position less reliable because it challenges the president’s authority and the concept of civilian control of the military)
- Includes relevant outside information
- Supports the theme with relevant facts and/or examples from the documents

Score of 3:

- Develops **both** aspects of the task in some depth
- Is more descriptive than analytical (applies and may analyze information)
- Includes some relevant outside information
- Includes some relevant facts and/or examples from the documents; may include some minor inaccuracies

Note: If only **one** aspect of the task is thoroughly developed in depth and if the response meets **most** of the other Level 5 criteria, the response may be a Level 3 paper.

Score of 2:

- Minimally develops **both** aspects of the task *or* develops **one** aspect of the task in some depth
- Is primarily descriptive; may include faulty analysis
- Includes little relevant outside information
- Includes a few relevant facts and/or examples from the documents; may include some inaccuracies

Score of 1:

- Minimally addresses the task
- Is descriptive; may lack understanding or application
- Includes minimal or no relevant outside information
- Includes a few relevant facts and/or examples from the documents; may make only vague, unclear references to the documents; may include inaccuracies

Score of 0:

Fails to develop the task; *OR* includes no relevant facts or examples; *OR* includes only entire documents copied from the test booklet; *OR* is illegible; *OR* is a blank paper

All sample student essays in this rating guide are presented in the same cursive font while preserving actual student work, including errors. This will ensure that the sample essays are easier for raters to read and use as scoring aids.

Raters should continue to disregard the quality of a student’s handwriting in scoring examination papers and focus on how well the student has accomplished the task. The content-specific rubric should be applied holistically in determining the level of a student’s response.

Key Ideas from the Documents

(This list is not all inclusive.)

Document 1 —President Truman’s radio report to American people North Koreans supported by millions of Chinese soldiers Soviet Union stands behind Chinese with tanks, planes, submarines, and soldiers Truman consulted with ablest military advisors in the country We must not waste lives of fighting men We must prevent third world war Relieving MacArthur will end doubt and confusion about policy	Document 2 —General MacArthur’s farewell speech to Congress No alternative in war but to use every available means to bring to a swift end Object of war is victory, not indecision No substitute for victory We should not appease Red China History teaches appeasement begets new and bloodier war Appeasement is like blackmail Soldiers don’t want to surrender military advantages to enemy
---	---

Relevant Outside Information

(This list is not all inclusive.)

General Douglas MacArthur’s knowledge of Pacific theater Containment policy Cold War Red Scare and McCarthyism Division of Korean peninsula at 38th parallel North Korean invasion of South Korea United Nations Security Council Resolution Police action/undeclared war Yalu River Principle of civilian control of the military Presidential power of commander in chief

Reliability of Document 2

(This list is not all inclusive.)

Reliable — <i>Purpose</i> : MacArthur’s purpose in calling for expansion of the war effort was based on his vast military expertise in the Pacific during World War II, suggesting Document 2 is a reliable source of evidence about policy concerning the Korean War. <i>Audience</i> : MacArthur’s appeal to a conservative anti-communist audience used widely-held views concerning the danger of appeasement, allowing Document 2 to be a reliable source of evidence about the mood of most Americans in 1951.	Unreliable — <i>Point of view</i> : MacArthur’s speech fails to consider the many costs of widening the war into China, stated by President Truman, making Document 2 very unreliable. <i>Bias</i> : MacArthur was a career military leader who failed to respect the constitutional principle of civilian control of the military, showing a personal bias that undermines this document as a reliable source of evidence.
--	---

Documents 1 and 2 propose opposite viewpoints between President Truman and General MacArthur during the Korean War. The United States adopted George Kennan policy of containment following the end of WW2 as communism was supported by the Soviet Union and quickly spread. The Korean War was the first of the “proxy wars” in which the fight was between two sides divided by the 38th parallel, one supported by the United States, the other by the Soviet Union and China. The Korean War was fought between the communist north and the UN backed south. Douglas MacArthur, hero of the Pacific, was the leading general in this war. The UN forces allied with South Korea pushed North Korea up nearing China. MacArthur proposed invading China and defeating the Communist Regime. This directly contradicts the Policy of limited war that President Truman endorsed. MacArthur was fired to uphold civilian control of the military when he was defying the president.

The purpose of MacArthur’s Farewell Speech was to convince Congress that invading China was a better idea than reverting to the failed appeasement policies of the past. Furthermore, he clearly wanted to restore his honor and his reputation since he had been fired by the president. He used this speech on the floor of Congress to deliver a vendetta against President Truman, making it an unreliable source for judging the wisdom of invading China.

Set 2, Anchor Level 5

The response:

- Thoroughly develops **both** aspects of the task in depth
- Is more analytical than descriptive (*Historical Context*: the United States adopted George Kennan's policy of containment following the end of World War II as communism was supported by the Soviet Union and quickly spread; the Korean War was the first of the "proxy wars" in which the fight was between two sides divided by the 38th parallel; *Purpose*: the purpose of MacArthur's farewell speech was to convince Congress that invading China was a better idea than reverting to the failed appeasement policies of the past; he used this speech on the floor of Congress to deliver a vendetta against President Truman, making it an unreliable source for judging the wisdom of invading China)
- Includes relevant outside information (George Kennan's policy of containment following the end of World War II; proxy wars; 38th parallel; communist North; UN backed south; hero of the Pacific; civilian control of the military; vendetta against President Truman)
- Supports the theme with many relevant facts and/or examples from the documents (*Document 1*: one supported by the United States, the other by the Soviet Union and China; leading general in this war; policy of limited war that President Truman endorsed; he had been fired by the president; *Document 2*: failed appeasement policies of the past; speech on the floor of Congress)

Conclusion: Overall, the response fits the criteria for Level 5. The response provides a concise description of the historical context and recognizes MacArthur's attempt to promote both a military strategy and an underlying purpose, clearly judging its reliability.

The historical context surrounding Document 1 and 2 is the Korean War and preventing Communism from spreading. President Truman was outraged when General MacArthur took matters into his own hands and risked the lives of countless US soldiers by demanding to widen the war, ignoring Truman's plan for a limited war. The US military was trying to protect South Korea from Communist influence, so the goal was to push the Communists and their troops back up above the 38th parallel. General MacArthur decided to keep pushing up even after crossing the border between North and South Korea, involving Red China. To back this decision he stated, "War's very object is victory, not prolonged indecision," (Document 2). Truman responded by relieving the general.

In Document 2 the point of view of General MacArthur is an important aspect of understanding the reason for MacArthur's aggressive position, but it can also affect the source's reliability as to which leader was right. MacArthur was the general in charge of all the soldiers stationed in Korea so he understood the military situation. He stated to Congress that his soldiers questioned why they had to stop fighting but his speech ignores the fact that the president was ultimately the commander-in-chief and had a legitimate goal of preventing a third world war. It is not responsible to accept the reliability of a source with only one point of view, and especially from someone so used to being obeyed without question.

Set 2, Anchor Level 4

The response:

- Develops **both** aspects of the task in depth but does so somewhat unevenly by developing the reliability of Document 2 more thoroughly than the historical context
- Is both descriptive and analytical (*Historical Context*: President Truman was outraged when General MacArthur took matters into his own hands and risked the lives of countless U.S. soldiers by demanding to widen the war, ignoring Truman's plan for a limited war; the United States military was trying to protect South Korea from communist influence, so the goal was to push the communists and their troops back up above the 38th parallel; *Point of View*: he stated to Congress that his soldiers questioned why they had to stop fighting but his speech ignores the fact that the president was ultimately the commander in chief and had a legitimate goal of preventing a third world war; it is not responsible to accept the reliability of a source with only one point of view, and especially from someone so used to being obeyed without question)
- Includes relevant outside information (Asia; demanding to widen the war; United Nations resolution; 38th parallel; commander in chief)
- Supports the theme with relevant facts and/or examples from the documents (*Document 1*: keep communism from spreading; risk the lives of countless U.S. soldiers; limited war; relieve General MacArthur; preventing a third world war; *Document 2*: war's every object is victory not prolonged indecision; his soldiers questioned why they had to stop fighting)

Conclusion: Overall, the response meets the criteria for Level 4. The response effectively uses both documents and outside information to assess the reliability of MacArthur's speech. However, the discussion of historical context lacks the level of development usually seen in a higher level response.

The historical context surrounding these documents is the policy of containment during the Korean War. The United States had just come out of World War II, and was extremely reluctant to enter another world war against a strong Army. General Douglas MacArthur went against the beliefs of President Harry Truman as he pushed to enter China, which got him fired. The US had joined the side of South Korea fighting Communist North Korea. The Chinese were helping North Korea which concerned President Truman who supported a limited war.

In Document 2, General Douglas MacArthur's point of view affects this document's use as a reliable source. General MacArthur was a highly admired war hero, and a good general who believed he could win any war with the right resources. This point of view is a one-sided opinion that favors widening the Korean War instead of appeasing China. Therefore it is not a reliable source of evidence.

Set 2, Anchor Level 3

The response:

- Develops *both* aspects of the task in some depth
- Is more descriptive than analytical (*Historical Context*: the U.S. had joined the side of South Korea fighting communist North Korea; the Chinese were helping North Korea, which concerned President Truman, who supported a limited war; *Point of View*: General Douglas MacArthur's point of view affects Document 2's use as a reliable source; General MacArthur was a highly admired hero and a good general who believed he could win any war with the right resources; this point of view is a one-sided opinion that favors widening the Korean War instead of appeasing China and therefore is not a reliable source of information)
- Includes some relevant outside information (containment; World War II; highly admired war hero)
- Includes some relevant facts and/or examples from the documents (*Document 1*: he pushed to enter China, which got him fired; concerned President Truman who supported a limited war; *Document 2*: General Douglas MacArthur went against the belief of President Truman as he pushed to enter China; favors widening the Korean War instead of appeasing China)

Conclusion: Overall, the response meets the criteria for Level 3. The response shows understanding of the task and of the issues that divided Truman and MacArthur. However, it lacks the depth and detail of a higher level response.

The historical context behind both documents are the Korean War from 1951-1953. It would see the North invade South Korea and many nations in NATO including the U.S. would lend their aid to help fight off the North. The North, which was backed by China and the Soviet Union, would get pushed back. However, with Chinese assistance, they would push South Korea and America back which prompted the U.S. to decide whether they should fight the Chinese as well. Document 1 shows Truman's side where he fears that war with China would lead to a third world war while in doc 2, MacArthur believed that letting China off the hook would be like a repeat of appeasement which was something which would be traced back to WW2.

Document 2 is written by famous general MacArthur who was known for his victory in the Pacific campaign during the second world war against the Japanese. The point of view stated was: that if America lets China off the hook, then this would be a repeat of appeasement. Appeasement was something done in WW2 which would allow Germany to take territories in Europe without consequence in order to let them do what they want. Appeasement would be the main reason Germany would start WW2 in Europe and MacArthur believes that the same thing would happen if America doesn't respond. He fears of an outcome of an inevitable war with less appeasement.

Set 2, Anchor Level 2

The response:

- Minimally develops *one* aspect of the task in some depth
- Is primarily descriptive (*Historical Context*: it would see the North invade South Korea; with Chinese assistance they would push South Korea and America back, which prompted the U.S. to decide whether they should fight the Chinese as well; *Point of View*: if America lets China off the hook, then this would be a repeat of appeasement; Document 1 shows Truman's side where he fears that war with China would lead to a third world war)
- Includes some relevant outside information (North invade South Korea; known for his victory in the Pacific campaign during the Second World War against the Japanese; appeasement was something done in World War II, which would allow Germany to take territories in Europe) includes an inaccuracy: (many nations in NATO)
- Includes a few relevant facts and/or examples from the documents (*Document 1*: backed by China and the Soviet Union, Truman fears that war with China would lead to a third world war; *Document 2*: letting China off the hook would be like a repeat of appeasement)

Conclusion: Overall, the response meets the criteria for Level 2. The response understands the two positions in the documents and has a good explanation of appeasement, but fails to clearly explain how point of view affects the reliability of MacArthur's speech.

Everyones main goal is to prevent war, while doing this there may be some conflict involed. President Truman is trying to stop the spread of communism because it will make war worst. North Koreans and Chinese are all the front lines with soilders and truman doesn't want war. General MacArthur doesn't agree with the policy and thinks war will result in victory.

Document 2 is not a reliable source of evidence because of bias. We are just getting the personal opionn of General MacArthur. As it states ""why" my soldiers asked of me, "surrender military advantages to an enemy in the field?" I could not answer." This shows we are only able to understand how he thinks about this situation. This is why document 2 is not reliable source.

Set 2, Anchor Level 1

The response:

- Minimally addresses the task
- Is descriptive (*Historical Context*: President Truman is trying to stop the spread of communism; North Koreans and Chinese are all on the front lines with soldiers; *Bias*: we are just getting the personal opinion of General MacArthur; we are only able to understand how he thinks about this situation)
- Includes no outside information
- Includes a few relevant facts and/or examples from the documents (*Document 2*: MacArthur could not answer his soldiers when asked why should we "surrender military advantages to an enemy in the field")

Conclusion: Overall, the response meets the criteria for Level 1. The description of the historical context lacks understanding and the response provides only a simple and brief explanation of how MacArthur's bias detracts from the document's reliability.

Post World War II witnessed the rise of the Soviet Union and spread of communism. The U.S. was unsure how to approach this new conflict dubbed the Cold War but the adopted a policy of containment to try and prevent the spread of communism. Documents 1 and 2 occur around the start of the Cold War. The creation of nuclear weapon technology by the U.S. was now also in the hands of the Soviet Union. This created a Mutually Assured Destruction Situation if nuclear weapons were used. Because of MAD the U.S. attempted to solve tensions diplomatically but also maintaining a strong military force.

The purpose of Document 2 is to warn. General MacArthur seemed to be somebody that wanted to take a strong approach in the Cold War. He believed that war is for victory and diplomatic solutions like appeasement are a desprite attempt at peace.

At the beginning of the Cold War the U.S. started a policy of containment, meaning the U.S. would now consider the spread of communism as a threat to the U.S. and her allies, and would attempt to stop its spread as best the U.S. can. The Korean War was the first military act of containment by the U.S. The goal of this military intervention was to hold the spread of communism at the 38th parallel. After communist troops from the north invaded South Korea in 1950, the United Nations Security Council voted to send troops to stop the aggression. During the conflict General Douglas MacArthur lead U.N. troops almost up to the Chinese border with Korea, China took this as an act of aggression and pushed U.S. and other U.N. forces back to the 38th parallel. General MacArthur insisted on crossing into China and destroying the communists' supplies. This was a blatant disagreement with the commander-in-chief, Truman, who wanted a limited war, not a wider conflict like World War I.

Document 2's reliability can be questioned due to its overwhelming bias. Having been relieved of duty, he would have been bitter and eager to defend his strategy and his status as a war hero before Congress. In his mind he thought he was right, and this led him to forget about the constitutional concept of civilian control of the military.

The context surrounding the documents is the Korean war and whether it should be limited to the peninsula or aggressively challenge China to the North. Backed by the entire Chinese military, North Korea sought to spread its disease of communism to South Korea by crossing the 38th parallel, which had divided Korea after the defeat of Japan. In response and under the policy of containment, president Harry Truman got the U.S. involved in the war effort. He appointed General Douglas MacArthur to take charge of the UN forces since he had played a big role in the success of major Pacific battles during WWII. MacArthur proved his worth in Korea, pushing the communist north forces all the way to the Chinese border. MacArthur grew over-ambitious, and without consulting the president he argued for crossing into China to stop the advance of Chinese and Soviet soldiers with their military supplies. Upon hearing of this, Truman grew worried that this would provoke all out war with China, and eventually the Soviet Union. Truman fired MacArthur for the safety of the American people and to maintain the president's authority as the ultimate commander of the military.

In Document 2, MacArthur tries to justify his aggression in the Korean war. The reliability of his arguments can be questioned, however. His point of view is that limiting the war would be appeasing China, and those that do so are "blind to history's clear lesson" (Document 2). He goes on to say that trying to appease China would only lead to a worsened and bloodier war in the future. It is worthwhile to give credit to what MacArthur is saying, seeing as he is a decorated hero from World War II and had been on the ground in Korea for over a year. With that being said, even though he believed that he was right, his actions

Short-Essay Question, Set 2—Practice Paper – C

jeopardized the safety of the American people. Truman's war goal was to contain the spread of communism into South Korea and it succeeded because to this day, unlike Vietnam, the peninsula is still divided.

During WWII, the world was falling apart but then the USA, GB and the Soviet Union won the war and the future seemed bright. However Stalin and Soviet Russia didn't agree with the other powers, which lead them to become the enemy. As the Soviet Union was already Communist and the US was not, their ideologies and ideas would clash. This lead to the Cold War which caused the U.S.A to try and contain Communism from spreading.

Harry Truman had big decisions and one was the fight in Korea. North Korea was Communist & South Korea was not, however, North Korea believed they could defeat southern Korea and make it all Communist. As China and the Soviet Union were already Communist, the US didn't want the rest of Asia to fall to Communism. Truman did not want an all out war in Asia and didn't want his soldiers to suffer. So when Douglas MacArthur did not listen to Truman and wanted to risk his own men by invading China, he would be relieved of his duties. MacArthur wanted to win war through military & brute force.

General MacArthur was stubborn and wanted to use the full force of the military to defeat North Korea. The purpose of his speech was to claim there was no other way to win the war. However his speech would not be reliable. When the Korean War ended the USA met Truman's goal because communism did not spread into South Korea. Later, the Soviet Union would fall apart and no longer be communist and South Korea's border is still at the 38th parallel today.

Document 1 is a speech by Harry Truman, president of the United State about the situation of the Korean War. The Korean War, was a type of “proxy war” between the United States and USSR. What this meant was that the US wanted to limit the spread of communism post-WWII, this phenomenon is commonly known as “containment policy”.

The Korean war was a conflict in the Cold War, which was a tense period between the US and USSR. During the cold war both side aimed to spread their ideologies (USSR – communism and US – capitalism) and did so by financial aid (i.e Marshall Plan) and military involvement (i.e Korean and Vietnam War). In the Korean war specifically the North aimed to spread communism to South Korea and thus the US got involved.

Document 2 is a farwell speech by general MacArthur who was general during the Korean War. Some context is that the Koren War was a conflict between the US and USSR intrests in the Cold War. North Korea was supported by the USSR and South Korea was supported by the US.

MacArthur has a very anti-communist and pro-containment point of view. He speaks: of a “Red China” and warns against appeasement, clearly he is pro-war in Korea. This point of view may make him not the most reliable source because he is a general who is pro-war.

Set 2, Practice Paper A—Score Level 1

The response:

- Minimally addresses the task
- Is both descriptive and analytical (*Historical Context*: the United States was unsure how to approach this new conflict dubbed the Cold War, but adopted a policy of containment to try and prevent the spread of communism; *Purpose*: General MacArthur seemed to be somebody who wanted to take a strong approach in the Cold War)
- Includes some relevant outside information (Post World War II; Cold War; nuclear weapon also in the hands of the Soviet Union; mutually assured destruction)
- Includes a few relevant facts and/or examples from the documents (*Document 1*: prevent the spread of communism; *Document 2*: MacArthur wanted to take a strong approach; war is for victory; appeasement is wrong)

Conclusion: Overall, the response meets the criteria for Level 1. Although the response shows some knowledge of the Cold War, it fails to mention the conflict in Korea or to explore MacArthur's purpose and how it reflects the reliability of Document 2.

Set 2, Practice Paper B—Score Level 4

The response:

- Develops *both* aspects of the task but does so unevenly by discussing Document 2's historical context more thoroughly than its reliability
- Is both descriptive and analytical (*Historical Context*: the Korean War was the first military act of containment; this was a blatant disagreement with the Commander-In-Chief, Truman, who wanted a limited war, not a wider conflict like World War I; *Bias*: Document 2's reliability can be questioned due to its overwhelming bias; having been relieved from duty, he would have been bitter and eager to defend his strategy and his status as a war hero)
- Includes relevant outside information (Cold War; containment; 38th parallel; North invaded; 1950; United Nations Security Council; voted to send troops almost up to the Chinese border; destroying the communists' supplies; insisted in crossing into China; blatant disagreement with the Commander in Chief; war hero; civilian control of the military)
- Supports the theme with relevant facts and/or examples from the documents (*Document 1*: limited war; World War; relieved of duty; *Document 2*: defend his strategy)

Conclusion: Overall, the response meets the criteria for Level 4. The discussion of the historical context of the documents includes detailed and relevant information about the events surrounding the documents. However, the discussion of Document 2's reliability introduces bias as a source of the document's reliability and provides only a limited discussion.

Set 2, Practice Paper C—Score Level 5

The response:

- Thoroughly develops **both** aspects of the task
- Is more analytical than descriptive (*Historical Context*: backed by the entire Chinese military, North Korea sought to spread its disease of communism to South Korea by crossing the 38th parallel, which had divided Korea after the defeat of Japan; MacArthur grew over ambitious, and without consulting the president he argued for crossing into China to stop the advance of Chinese and Soviet soldiers with their military supplies; *Point of View*: his point of view is that limiting the war would be appeasing China and those who do so are “blind to history’s clear lesson”; it is worthwhile to give credit to what MacArthur is saying, seeing as he is a decorated hero from World War II and had been on the ground in Korea for over a year; Truman’s war goal was to contain the spread of communism into Korea and he succeeded because to this day, unlike Vietnam, the peninsula remains divided)
- Includes relevant outside information (peninsula; 38th parallel divided Korea after the defeat of Japan; UN forces; Pacific battles during World War II; pushing the communist north forces all the way to the Chinese border; military supplies; maintain the president’s authority as the ultimate commander of the military; decorated hero from World War II; unlike Vietnam, the peninsula is still divided)
- Supports the theme with many relevant facts and/or examples from the documents (*Document 1*: backed by the entire Chinese military; he argued for crossing into China; Truman grew worried that this would provoke all-out war with China; *Document 2*: MacArthur tries to justify his aggression in the Korean War; limiting the war would be appeasing China; “blind to history’s clear lesson”; appeasing China would lead to bloodier war in the future)

Conclusion: Overall, the response fits the criteria for Level 5. The response uses insightful analysis and ample detail to establish the historical context of the documents. Although the response makes no clear declaration of the reliability of Document 2, it makes a strong case for considering the possibility of either one.

Set 2, Practice Paper D—Score Level 3

The response:

- Develops **both** aspects of the task in some depth
- Is more descriptive than analytical (*Historical Context*: as China and the Soviet Union were already communist, the United States did not want the rest of Asia to fall to communism; Truman did not want an all-out war in Asia and did not want this soldiers to suffer; *Purpose*: the purpose of his speech was to claim there was no other way to win the war; when the Korean War ended the United States met Truman’s goal because communism did not spread into South Korea)
- Includes some relevant outside information (World War II; U.S.A., Great Britain, and the Soviet Union won the war; Stalin; Cold War; contain communism; communism did not spread into South Korea; the Soviet Union would fall apart and no longer be communist) includes an inaccuracy: (border is still at the 38th parallel today)
- Includes some relevant facts and/or examples from the documents (*Document 1*: Truman didn’t want his soldiers to suffer; he would be relieved of his duties; *Document 2*: MacArthur wanted to use the full force of the military to defeat North Korea; there was no other way to win the war)

Conclusion: Overall, the response meets the criteria for Level 3. The response clearly understands the historical context and the basic disagreement between Truman and MacArthur. However, it lacks analysis of the documents and includes only a limited discussion of why Document 2 was unreliable.

Set 2, Practice Paper E—Score Level 2

The response:

- Minimally develops **both** aspects of the task
- Is primarily descriptive (*Historical Context*: the Korean War was a type of “proxy war” between the United States and USSR; the United States wanted to limit the spread of communism post-WWII; this phenomenon is commonly known as “containment policy”; *Point of View*: he speaks of a “Red China” and warns against appeasement; this point of view may make him not the most reliable source because he is a general who is pro-war)
- Includes some relevant outside information (“proxy war”; containment policy; Cold War; both sides aimed to spread their ideologies; US-capitalism; Marshall Plan; Vietnam War)
- Includes a few relevant facts and/or examples from the documents (*Document 1*: speech by Harry Truman, president of the United States; situation of the Korean War; North aimed to spread communism to South Korea; *Document 2*: farewell speech by General MacArthur; speaks of a “Red China”; warns against appeasement)

Conclusion: Overall, the response meets the criteria for Level 2. The discussion of the historical context is minimal and repetitive. The discussion of reliability is limited to the fact that as a general, MacArthur was pro-war.

Document 1

Powerful and resourceful gangsters have banded together to make war upon the whole human race. Their challenge has now been flung at the United States of America. The Japanese have treacherously violated the long-standing peace between us. Many American soldiers and sailors have been killed by enemy action. American ships have been sunk; American airplanes have been destroyed. . . .

We are now in this war. We are all in it all the way. Every single man, woman, and child is a partner in the most tremendous undertaking of our American history. We must share together the bad news and the good news, the defeats and the victories—the changing fortunes of war.

So far, the news has been all bad. We have suffered a serious set-back in Hawaii. Our forces in the Philippines, which include the brave people of that Commonwealth, are taking punishment, but are defending themselves vigorously. The reports from Guam and Wake and Midway Islands are still confused, but we must be prepared for the announcement that all three outposts have been seized. . . .

Every citizen, in every walk of life, shares this same responsibility. The lives of our soldiers and sailors—the whole future of this nation—depend upon the manner in which each and every one of us fulfills his obligation to our country.

Source: President Franklin D. Roosevelt, Fireside Chat, December 9, 1941

31 According to President Franklin D. Roosevelt, what is *one* challenge facing the United States in December 1941?

Score of 1:

- States a challenge facing the United States in December 1941 according to President Franklin D. Roosevelt
Examples: powerful and resourceful gangsters had banded together to make war upon the whole human race; Japanese had violated the long-standing peace between the United States and themselves; many American soldiers/sailors had been killed; Japan had attacked America; American ships had been sunk; American planes had been destroyed; the United States had to be prepared for the announcement that forces/Guam/Wake/Midway Islands may have been seized; the United States had suffered a serious setback in Hawaii

Score of 0:

- Incorrect response
Examples: United States had been attacked by Guam/Wake/Midway Islands; Japan had lost outposts in the Pacific; Hawaii had attacked the United States; Japan had signed a treaty with the United States
- Vague response
Examples: serious setback; the reports are confused; challenge had been flung
- No response

**WESTERN DEFENSE COMMAND AND FOURTH ARMY
WARTIME CIVIL CONTROL ADMINISTRATION**

Presidio of San Francisco, California
April 1, 1942

**INSTRUCTIONS TO ALL PERSONS OF
JAPANESE
ANCESTRY**

Living in the Following Area:

All of San Diego County, California:

All Japanese persons, both alien and non-alien, will be evacuated from the above designated area by 12:00 o'clock noon Wednesday, April 8, 1942 . . .

The Following Instructions Must Be Observed:

1. A responsible member of each family, preferably the head of the family, or the person in whose name most of the property is held, and each individual living alone, will report to the Civil Control Station . . .

2. Evacuees must carry with them on departure for the Reception Center, the following property:

- (a) Bedding and linens (no mattress) for each member of the family;
- (b) Toilet articles for each member of the family;
- (c) Extra clothing for each member of the family;
- (d) Sufficient knives, forks, spoons, plates, bowls and cups for each member of the family;
- (e) Essential personal effects for each member of the family....

Go to the Civil Control Station at 1919 India Street, San Diego, California, between 8:00 a.m. and 5:00 p.m., Thursday, April 2, 1942, or between 8:00 a.m. and 5:00 p.m., Friday, April 3, 1942, to receive further instructions.

J. L. DeWITT
Lieutenant General, U.S. Army
Commanding

Source: National Archives, adapted by *Newsweek*, 1991

Document 2b

This store was located in Oakland, California. The owner was a University of California graduate of Japanese descent. On December 8, the day after the attack on Pearl Harbor, he placed the “I AM AN AMERICAN” sign on the storefront. After evacuation orders were issued, the store was closed and eventually sold despite the owner’s declaration of loyalty.



Source: Dorothea Lange, War Relocation Authority, Courtesy of the National Archives

32 What do these documents demonstrate about the treatment of Japanese Americans during World War II?

Score of 1:

- States what these documents demonstrate about the treatment of Japanese Americans during World War II
Examples: treated as if they were not American citizens; treated unfairly; evacuated from their homes without cause; given limited time for departure from their homes; declarations of loyalty did not protect them from evacuation; sent to designated areas against their will; property allowed to each person/family limited; both alien and non-alien Japanese persons to be evacuated from San Diego County California; business ownership jeopardized by evacuation orders

Score of 0:

- Incorrect response
Examples: treated fairly during the war; declaration of loyalty protected them; only alien Japanese persons to be evacuated; all members of a family must report to the Civil Control Station
- Vague response
Examples: I am an American; Western Defense Command and Fourth Army Wartime Civil Control Administration; grocery stores closed; all of San Diego County; instructions to be observed
- No response

Document 3a

Fred Korematsu, an American citizen, was born of Japanese parents in Oakland, California. He studied briefly at Los Angeles City College and then became a welder. He tried to join the navy, which rejected him for medical reasons.

Korematsu refused to report for relocation, and on May 30 local police arrested him. Although some of the internees he knew advised him against contesting relocation, he decided to mount a legal fight. He explained why:

Assembly Camps were for: Dangerous Enemy Aliens and Citizens; These camps have been definitely an imprisonment under armed guard with orders shoot to kill. In order to be imprisoned, these people should have been given a fair trial in order that they may defend their loyalty at court in a democratic way, but they were placed in imprisonment without any fair trial! Many Disloyal Germans and Italians were caught, but they were not all corralled under armed guard like the Japanese—is this a racial issue? If not, the Loyal Citizens want fair trial to prove their loyalty! Also their [sic] are many loyal aliens who can prove their loyalty to America, and they must be given fair trial and treatment! Fred Korematsu's Test Case may help.

Source: Stephen Breyer, *Making Our Democracy Work*, A Judge's View, Alfred A. Knopf, New York, 2010 (adapted)

Document 3b



Source: Franklin D. Roosevelt Presidential Library

Eleanor Roosevelt visited Gila River Internment Camp on April 23, 1943. She made the following remarks on April 26 to the *Los Angeles Times*:

... We have no common race in this country, but we have an ideal to which all of us are loyal: we cannot progress if we look down upon any group of people amongst us because of race or religion. Every citizen in this country has a right to our basic freedoms, to justice and to equality of opportunity. We retain the right to lead our individual lives as we please, but we can only do so if we grant to others the freedoms that we wish for ourselves.

Source: Introduction from Greg Robinson, Université du Québec À Montréal; Speech from: *Confinement and Ethnicity: An Overview of World War II Japanese American Relocation Sites*, by J. Burton, et al.

33 Based on these documents, what was *one* reason for opposition to the internment of Japanese Americans during World War II?

Score of 1:

- States a reason for opposition to the internment of Japanese Americans during World War II based on these documents

Examples: they were not given a fair trial; people of Japanese ancestry were imprisoned and kept under armed guard; they were not able to defend their loyalty to America in court; unfair treatment of those imprisoned; we cannot progress if we look down upon any group of people because of race/religion; every citizen has a right to basic freedoms/justice/equality of opportunity; must grant to others the freedoms that we wish for ourselves; it was unfair; restricted the rights of American citizens; they were targeted/arrested/interned based on fear; many disloyal Germans/Italians caught but not all put in relocation camps

Score of 0:

- Incorrect response
Examples: Korematsu rejected from joining the Navy; they were given a fair trial; Fred Korematsu was a Japanese citizen; all disloyal Germans/Italians were put in relocation camps
- Vague response
Examples: Gila River Internment Camp; born of Japanese parents; Fred Korematsu studied at college; test case; Eleanor Roosevelt made remarks
- No response

Document 4

The sweeping story of what happened to the American Japanese and the Caucasians who imprisoned them is not a series of isolated events, but a look into a dark side of the “American way.” The story goes back at least to the treatment of Native Americans, to the persecution of British loyalists after the American Revolution, to the enslavement of Africans in the New World, to the treatment of American Germans during World War I, to Jewish quotas and “Irish Need Not Apply,” to the excesses of official bodies such as the House Un-American Activities Committee. And, at least to me, it seems there is always the possibility of similar persecutions happening again if fear and hysteria overwhelm what Abraham Lincoln called “the better angels of our nature.” . . .

Then, partly because of the black civil rights and anti-Vietnam War protest movements in the 1960s and 1970s, young Japanese Americans began questioning their parents and grandparents about what happened to them in the 1940s. Soon enough, books and memoirs by American Japanese held in camps began to appear; many of them were striking works of literature, many privately published, many never published, and, significantly, a large number of them were books for children and young adults. Japanese American organizations were energized by the questions asked by the new generations; oral history projects were created, letters became public, small museums were opened, and activists lobbied for official apologies, financial redress [compensation], and the designation of some of the camp sites, like Manzanar, as national historical monuments. Government records of the evacuation began to be discovered or declassified. Soon academic tracts and legal texts were written focusing on the constitutionality (or unconstitutionality) of what happened during the war.

Source: Richard Reeves, *The Shocking Story of Japanese American Internment in World War II*, Holt and Company, New York, 2015

34 According to Richard Reeves, what is *one* effort by Japanese Americans to bring public attention to the history of their internment?

Score of 1:

- States an effort by Japanese Americans to bring public attention to the history of their internment according to Richard Reeves
Examples: some wrote books about Japanese internment; memoirs about internment published; books for children/young adults created on the topic; oral history projects created and made public; small museums opened; activists lobbied for official apologies/financial redress/designation of campsites as national historical monuments; government records began to be declassified; constitutionality of the evacuations/internment questioned by legal texts; young Japanese Americans questioning parents/grandparents about what happened to them in the 1940s led to books/memoirs

Score of 0:

- Incorrect response
Examples: closed museums; banned books about Japanese internment; they lobbied the House Un-American Activities Committee; discouraged internees from discussing their experiences
- Vague response
Examples: fear; hysteria; discoveries; isolated events; dark side of “American Way”; treatment of Native Americans; “Irish Need Not Apply”; House Un-American Activities Committee
- No response

Document 5a

The Commission on Wartime Relocation and Internment of Civilians was established by Congress in 1980 to review the facts and circumstances surrounding President Franklin D. Roosevelt's Executive Order 9066, issued on February 19, 1942. This statement is part of the Commission's report.

. . . The promulgation [issuance] of Executive Order 9066 was not justified by military necessity, and the decisions which followed from it—detention, ending detention and ending exclusion—were not driven by analysis of military conditions. The broad historical causes which shaped these decisions were race prejudice, war hysteria and a failure of political leadership. Widespread ignorance of Japanese Americans contributed to a policy conceived in haste and executed in an atmosphere of fear and anger at Japan. A grave injustice was done to American citizens and resident aliens of Japanese ancestry who, without individual review or any probative [provable] evidence against them, were excluded, removed and detained by the United States during World War II.

Source: *Personal Justice Denied: Report of the Commission on Wartime Relocation and Internment of Civilians*, 1982

Document 5b

The Members of Congress and distinguished guests, my fellow Americans, we gather here today to right a grave wrong. More than 40 years ago, shortly after the bombing of Pearl Harbor, 120,000 persons of Japanese ancestry living in the United States were forcibly removed from their homes and placed in makeshift internment camps. This action was taken without trial, without jury. It was based solely on race, for these 120,000 were Americans of Japanese descent. . . .

The legislation that I am about to sign provides for a restitution payment to each of the 60,000 surviving Japanese-Americans of the 120,000 who were relocated or detained. Yet no payment can make up for those lost years. So, what is most important in this bill has less to do with property than with honor. For here we admit a wrong; here we reaffirm our commitment as a nation to equal justice under the law.

Source: President Ronald Reagan, Remarks on Signing the Bill Providing Restitution for the Wartime Internment of Japanese-American Civilians, August 10, 1988

35 According to these documents, what is *one* result of the efforts to address the restriction of Japanese American civil liberties during World War II?

Score of 1:

- States a result of the efforts to address the restriction of Japanese American civil liberties during World War II according to these documents

Examples: Congress established Commission on Wartime Relocation and Internment of Civilians to review Executive Order 9066; Commission found Executive Order 9066 not justified as military necessity; analysis of military necessity claim found detention not justified; concluded that historical causes for decisions were race prejudice/war hysteria/failure of political leadership; determined grave injustice done; found Japanese Americans rights violated by evacuations/internment; determined government was wrong to put Japanese Americans in detention camps; restitution payment made for 60,000 surviving people from the camps; government admitted they were wrong; reaffirmed commitment as a nation to equal justice under law; President Reagan issued apology for Japanese American internment

Score of 0:

- Incorrect response

Examples: bombing of Pearl Harbor; Congress refused to examine facts behind the issuance of Executive Order 9066; Wartime Relocation Committee found no evidence of World War II restrictions of Japanese American civil liberties; President Reagan refused to admit United States wrongdoing in the case of Japanese Americans; President Reagan refused to sign bill providing restitution payments to surviving Japanese Americans

- Vague response

Examples: broad historical causes; Japanese Americans contributed; surviving Japanese Americans; forcibly removed; it was reviewed

- No response

Document 6

The following is an excerpt from Fred Korematsu's daughter, Karen Korematsu, in response to the United States Supreme Court decision to uphold an executive order banning travel to the United States from predominantly Muslim countries.

In writing the decision, Chief Justice John G. Roberts Jr. mentioned the 1944 Korematsu ruling, which he believed to be wrong. Karen Korematsu believed that Roberts' opinion officially overruled the *Korematsu v. United States* decision.

On Tuesday, the Supreme Court got it partly right. After nearly 75 years, the court officially overruled *Korematsu v. United States*. In the majority decision, Chief Justice John G. Roberts Jr., citing language used in a dissent to the 1944 ruling, wrote that the court was taking "the opportunity to make express what is already obvious: Korematsu was gravely wrong the day it was decided, has been overruled in the court of history, and—to be clear—has no place in law under the Constitution." . . .

My father spent his life fighting for justice and educating people about the inhumanity of the Japanese-American incarceration, so that we would learn from our mistakes. Although he would be somewhat glad his case was finally overruled, he would be upset that it was cited while upholding discrimination against another marginalized group. The court's decision replaced one injustice with another nearly 75 years later.

My father would still say, "Stand up for what is right."

Source: Karen Korematsu, "How the Supreme Court Replaced One Injustice With Another," *New York Times*, June 27, 2018

36 According to Karen Korematsu, what is *one* impact of Fred Korematsu's decision to challenge Japanese American internment?

Score of 1:

- States an impact of Fred Korematsu's decision to challenge Japanese American internment according to Karen Korematsu

Examples: Karen Korematsu believed Supreme Court finally overruled *Korematsu v. United States*; *Korematsu v. United States* overruled in court of history; despite progress United States still not respecting civil liberties of specific groups; discrimination against another marginalized group is still happening; Fred Korematsu's challenge to internment made it possible for later Supreme Court to reconsider 1944 decision; Court took opportunity to state *Korematsu* was gravely wrong day it was decided

Score of 0:

- Incorrect response
Examples: violation of civil liberties has ended; discrimination against marginalized groups ended; United States no longer violates civil liberties
- Vague response
Examples: injustice was replaced
- No response

United States History and Government
Content-Specific Rubric
Civic Literacy Essay (Question 37)
June 2024

Historical Context: Civil Liberties During World War II–Japanese American Internment

Throughout United States history, many constitutional and civic issues have been debated by Americans. These debates have resulted in efforts by individuals, groups, and governments to address these issues. These efforts have achieved varying degrees of success. One of these constitutional and civic issues is the *restriction of Japanese American civil liberties during World War II*.

Task:

- Describe the historical circumstances surrounding this constitutional or civic issue
- Explain efforts by individuals, groups, and/or governments to address this constitutional or civic issue
- Discuss the impact of the efforts on the United States and/or on American society

Scoring Notes:

1. This civic literacy essay has a minimum of **four** components (describing the historical circumstances surrounding the restriction of Japanese American civil liberties during World War II, explaining *at least two* efforts to address this issue by individuals, groups, and/or governments, and discussing the impact of the efforts on the United States and/or on American society).
2. The description of historical circumstances may focus on immediate or long-term circumstances.
3. The efforts to address the restriction of Japanese American civil liberties during World War II may focus on efforts by individuals, efforts by groups, efforts by governments, or any combination of these.
4. Individuals, groups, and/or governments do not need to be specifically identified as long as they are implied in the discussion.
5. The efforts to address the restriction of Japanese American civil liberties during World War II may be positive, negative, or a combination of both.
6. The discussion of the impact of the efforts to address the restriction of Japanese American civil liberties during World War II may be on the United States, on American society, or on both the United States and American society.
7. The discussion of the impact of the efforts to address the restriction of Japanese American civil liberties during World War II may focus on immediate or long-term results.
8. The same or similar information may be used to address more than one aspect of the task as long as the information is relevant to the aspect of the task being addressed.
9. The explanation of efforts to address the restriction of Japanese American civil liberties during World War II may be included in the discussion of the impact of the efforts on the United States and/or on American society.
10. The response may discuss efforts to address the restriction of Japanese American civil liberties during World War II and the impact of the efforts from different perspectives as long as the position taken is supported by accurate historical facts and examples.
11. For the purposes of meeting the criteria of using *at least four* documents in the response, documents 2a, 2b, 3a, 3b, 5a, and 5b may be considered separate documents **if** the response uses specific, separate facts from each document.

Score of 5:

- Thoroughly develops **all** aspects of the task evenly and in depth by describing the historical circumstances surrounding the restriction of Japanese American civil liberties during World War II, explaining *at least two* efforts to address the issue of the restriction of Japanese American civil liberties during World War II by individuals, groups, and/or governments, and discussing the impact of the efforts on the United States and/or on American society
- Is more analytical than descriptive (analyzes, evaluates, and/or creates* information), e.g., connects President Franklin D. Roosevelt's executive order relocating Japanese Americans to internment camps to factors such as long-term racial discrimination, West Coast fears of another attack, possible sabotage and espionage to constitutional challenges to the policy based on the rights of citizenship, and the Supreme Court's decision upholding the relocation policy, to the eventual renouncement of internment by each of the three branches of government
- Incorporates relevant information from *at least four* documents (see Key Ideas chart)
- Incorporates substantial relevant outside information (see Outside Information chart)
- Richly supports the theme with many relevant facts, examples, and details, e.g., Japanese attack on Pearl Harbor; terms of Executive Order 9066; "yellow-peril"; terms of Gentlemen's Agreement; *Korematsu v. United States* decision; Manzanar; Commission on Wartime Relocation and Internment of Civilians; restitution payments
- Demonstrates a logical and clear plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Score of 4:

- Develops **all** aspects of the task but may do so somewhat unevenly by discussing one aspect of the task less thoroughly than the other aspects of the task
- Is both descriptive and analytical (applies, analyzes, evaluates, and/or creates* information), e.g., discusses the impact that West Coast concerns about another attack and possible espionage following Pearl Harbor had on President Franklin D. Roosevelt's decision to relocate Japanese Americans for national security purposes, Fred Korematsu's constitutional challenge of the internment policy, attention brought by Eleanor Roosevelt's visit to an internment camp, and the eventual discrediting of the *Korematsu v. United States* decision by the Supreme Court 75 years later in an unrelated case
- Incorporates relevant information from *at least four* documents
- Incorporates relevant outside information
- Supports the theme with relevant facts, examples, and details
- Demonstrates a logical and clear plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Score of 3:

- Develops **all** aspects of the task with little depth *or* develops *at least three* aspects of the tasks in some depth
- Is more descriptive than analytical (applies, may analyze and/or evaluate information)
- Incorporates some relevant information from some of the documents
- Incorporates limited relevant outside information
- Includes some relevant facts, examples, and details; may include some minor inaccuracies
- Demonstrates a satisfactory plan of organization, includes an introduction and a conclusion that may be a restatement of the theme

Score of 2:

- Minimally develops *all* aspects of the task *or* develops *at least two* aspects of the task in some depth
- Is primarily descriptive; may include faulty, weak, or isolated application or analysis
- Incorporates limited relevant information from the documents *or* consists primarily of relevant information copied from the documents
- Presents little or no relevant outside information
- Includes few relevant facts, examples, and details; may include some inaccuracies
- Demonstrates a general plan of organization; may lack focus; may contain digressions; may not clearly identify which aspect of the task is being addressed; may lack an introduction and/or a conclusion

Score of 1:

- Minimally develops some aspects of the task
- Is descriptive; may lack understanding, application, or analysis
- Makes vague, unclear references to the documents or consists primarily of relevant and irrelevant information copied from the documents
- Presents no relevant outside information
- Includes few relevant facts, examples, or details; may include inaccuracies
- May demonstrate a weakness in organization; may lack focus; may contain digressions; may not clearly identify which aspect of the task is being addressed; may lack an introduction and/or a conclusion

Score of 0:

Fails to develop the task or may only refer to the theme in a general way; *OR* includes no relevant facts, examples, or details; *OR* includes only the theme, task, or suggestions as copied from the test booklet; *OR* is illegible; *OR* is a blank paper

All sample student essays in this rating guide are presented in the same cursive font while preserving actual student work, including errors. This will ensure that the sample essays are easier for raters to read and use as scoring aids.

Raters should continue to disregard the quality of a student's handwriting in scoring examination papers and focus on how well the student has accomplished the task. The content-specific rubric should be applied holistically in determining the level of a student's response.

Restriction of Japanese American Civil Liberties During World War II

Key Ideas from the Documents

(This list is not all-inclusive.)

Historical Circumstances

Doc 1—Japanese violated long-standing peace with United States (many American soldiers and sailors killed by enemy action; American ships sunk; American airplanes destroyed)

Areas attacked at start of World War II (Hawaii, Philippines, Guam, Wake, and Midway Islands)

Doc 2—Attack on Pearl Harbor, December 7, 1941

April 1, 1942 instructions to all persons of Japanese ancestry living in San Diego, California, from Western Defense Command and Fourth Army Wartime Civil Control Administration

Responsible member of each family will report to Civil Control Station

Property to be carried with each evacuee on departure for Reception Center (bedding and linens, toilet articles, extra clothing, sufficient eating utensils, essential personal effects)

Evacuation despite declarations of loyalty

Doc 4—Historical precedents (treatment of Native Americans; persecution of British loyalists after American Revolution; enslavement of Africans in New World; treatment of American Germans during World War I; Jewish quotas; “Irish Need Not Apply”; excesses of official bodies such as House Un-American Activities Committee)

Doc 5—Executive Order 9066, February 19, 1942

Shortly after bombing of Pearl Harbor 120,000 persons of Japanese ancestry living in United States forcibly removed from homes and placed in makeshift internment camps

Efforts to Address

Doc 3a—American citizen Fred Korematsu arrested for refusing to report for relocation (no fair trial for people placed in internment camps; disloyal Germans and Italians caught but not put under armed guard like Japanese)

Doc 3b—Remarks by Eleanor Roosevelt on Japanese American relocation sites (American ideal to which all Americans loyal; no progress if we look down upon any group of people amongst us because of race or religion; every citizen in United States has a right to our basic freedoms, to justice, and to equality of opportunity; right to lead our individual lives as we please but only if we grant to others the freedoms that we wish for ourselves)

Doc 4—Influence of black civil rights and anti-Vietnam War protest movements in 1960s and 1970s on young Japanese Americans questioning parents and grandparents about what happened to them in 1940s

Books and memoirs by American Japanese held in camps

Japanese American organizations energized by questions from new generations (oral history projects created; letters became public; small museums opened; lobbying by activists for official apologies, financial redress; some camp sites such as Manzanar designated national historical monuments)

Discovery or declassification of government evacuation records

Academic tracts and legal texts written focusing on constitutionality of what happened during war

Doc 5a—Commission on Wartime Relocation and Internment of Civilians established by Congress in 1980; report made in 1982

Doc 5b—Bill passed by Congress in 1988 providing restitution for wartime internment of Japanese American civilians; bill supported by President Ronald Reagan

Restriction of Japanese American Civil Liberties During World War II

Key Ideas from the Documents (continued)

(This list is not all-inclusive.)

Impact of Efforts

Doc 5a—Conclusions of Commission on Wartime Relocation and Internment of Civilians established by act of Congress in 1980 directed to review facts and circumstances surrounding Executive Order 9066 Order not justified by military necessity

Decisions not driven by analysis of military conditions (detention; ending detention; ending exclusion)

Decisions shaped by racial prejudice, war hysteria, and a failure of political leadership

Widespread ignorance of Japanese Americans contributed to policy

Policy conceived in haste and executed in atmosphere of fear and anger at Japan

Grave injustice done to American citizens and resident aliens of Japanese ancestry (without individual review or any probative evidence against them, they were excluded, removed, and detained by United States during World War II)

Doc 5b—Bill providing restitution for wartime internment of Japanese American civilians signed by President Ronald Reagan August 10, 1988

Recognition that internment of Japanese Americans a mistake

Reaffirming commitment of United States to equal justice under law

Restitution payment to each of 60,000 surviving Japanese Americans of 120,000 relocated or detained

Doc 6—*Korematsu v. United States* overruled in court of history (no place in law under Constitution)

Korematsu v. United States cited in Supreme Court decision to uphold executive order banning immigration from predominantly Muslim countries

Restriction of Japanese American Civil Liberties During World War II

Relevant Outside Information (This list is not all-inclusive.)

Historical Circumstances

Sudden and deliberate Japanese attack on Pearl Harbor while United States engaged in negotiations with Japan
Statement from President Franklin D. Roosevelt that Pearl Harbor will not be forgotten (“Day will live in infamy”)
Consideration by West Coast residents of their vulnerability (geographic location; concentration of Japanese American population; fear of espionage and sabotage)
Long history of anti-Japanese sentiment on West Coast (“yellow peril”; property ownership restrictions; employment discrimination; social segregation; white resentment of Japanese economic success; nativist labor unions; politicians; Gentlemen’s Agreement)
Denial of American citizenship to Japanese Americans in Immigration Act of 1924 (impact on American attitudes about Japanese American assimilation)
Intensification of harassment toward Japanese after Pearl Harbor (opinion that evacuation for duration of war a way to protect the group)
Call by California public officials for relocation of Japanese Americans (impact of public opinion on politics)
Legal wartime precedent (Sedition Act, 1918)
Justification for relocation based on national security
Significant losses as result of forced evacuation (jobs; assets; property losses; education)
Peaceful and cooperative compliance to relocation order

Efforts to Address

Military necessity justified as constitutional reason for government internment policy
Constitutionality of internment policies challenged by federal lawsuits (citizenship status of many Japanese American internees; 5th and 14th amendments; due process; right to privacy; no evidence of sabotage, espionage, treason; different treatment for German Americans and Italian Americans)
Details about *Korematsu v. United States*
Supreme Court ruling in government’s favor that evacuation based on national security not race (legality of internment not addressed)
Dissent of Supreme Court justice Frank Murphy (treating Japanese differently from Italians or Germans, legalization of racism)
Documentation of internment by photographer Dorothea Lange
Grassroots protests in internment camps (hunger strikes; refusal to fill out loyalty forms)

Restriction of Japanese American Civil Liberties During World War II

Relevant Outside Information (continued)

(This list is not all-inclusive.)

Impact of Efforts

Image of United States as tolerant, inclusive, melting-pot society tarnished
Continuation of discrimination and racism toward Japanese Americans after war despite no evidence of wrongdoing or disloyalty
Emotional and financial cost to Japanese Americans underestimated (shame; loss of dignity; homes and property lost by thousands; disruption of lives)
Potentially dangerous wartime precedent for democratic nation established in *Korematsu v. United States*
Inspiration for Asian American civil rights movement by the African American civil rights movement (promotion of ethnic studies programs; advocates for reparations; commitment to educating future generations of Americans about unfairness of internment)
Increased participation of Japanese Americans in political process and office-holding (local, state, and national levels)
Commission on Wartime Relocation and Internment recommendation for victim compensation
Congressional passage of Civil Rights Act of 1988 (national apology; compensation; appropriation for victims)
Activism to preserve internment camps as national historical sites (work with National Park Service; Tule Lake; establishment of Japanese American National Museum; historical societies; college campus groups)

Throughout American history, it has been common practice to discuss and debate America's checkered and controversial past of not upholding civil liberties. One such instance in which the United States acted against its ideological philosophy as being a fair and just nation where liberty and the rights of the individual are respected was the forceful internment of Japanese American citizens in isolated camps. Introduced as an executive order under President FDR it sparked a controversy regarding federal power to restrict civil liberties as well as impeding the rights of US citizens during times of war. The internment of Japanese American citizens is situated in the historical context of American-Japanese relations deteriorating due in part to Japanese Imperial aggression in the 1930s culminating in the two powers going to war in 1941. This would lead to scholars, politicians, and community leaders within the US arguing for complete transparency regarding the internment and arguing the unconstitutionality of the executive order in a Supreme Court case that did not protect due process rights of Japanese Americans. These debates would greatly impact American society leading to a more informed and skeptical public willing to question government decisions believed to be illegal and unconstitutional.

Japan had been an ambitious and growing imperial power following WWI. Ultra nationalism and militarism gripped a nation that felt cheated out of "deserved territory" after the "Great War." They had wanted overseas territory for raw materials and security. After nationalists and the Army seized control of the gov't in the late 1920s, Japan began a warpath to secure itself as the dominant power in the Far East. Atrocities committed by the Japanese such as the Rape of Nanjing

and the Panay Incident where Japan sunk a US ship drew criticism from the US. Even though Japan apologized for the Panay incident and paid for damages to the ship, relations between the countries would further sour when Japan annexed French Indo China following the fall of France and the US retaliated by limiting trade with Japan. When FDR placed an oil embargo on Japan they were fearful of their machine going dry. So on December 7th 1941, hoping to deliver a decisive knockout blow to America's Pacific fleet and with Japan believing war was inevitable, they launched a surprise attack on the US naval base in Pearl Harbor killing about 2400 Americans. US holdings in the Philippines, Guam, and Wake Island were also attacked. FDR asked Congress for a declaration of war with Japan on the next day and in a Fireside Chat with the American people he stressed every man, woman, and child needed to do their part to win war (Doc 1). Mobilizing the population he was preparing the US for total war with Japan which meant issuing executive order 9066, ordering the relocation of Japanese American citizens on the west coast to internment camps in places such as Manzanar and Tule Lake. According to a flyer authorized by the US Army, in San Diego citizens of Japanese ancestry had to relocate taking with them only a few possessions. Many had to abandon businesses or farms by either selling or hoping they could be reclaimed after the war. (Doc 2) With the context of Japanese internment established there were efforts by Americans to expose and reconcile that decision with the truth.

During World War II while Japanese Americans were interned there was an effort to bring to light the existence and experiences of those living in the internment camps and why the US decision to relocate

them was unjust, immoral, and unconstitutional. The Supreme Court determined and stated that the internment of Japanese American citizens was constitutional when Fred Korematsu took his case to them. He argued, according to current Supreme Court Justice Stephen Breyer, that Japanese Americans such as himself were not seditious and had been denied basic rights such as a right to due process and trial under the law. It seemed to Korematsu that facts did not matter. The Japanese Americans had been law-abiding patriotic American citizens who were willing like him to fight on the side of America against the enemy, Japan. They were victims of wartime fear and “yellow peril racism” that began many years before Pearl Harbor. In *Korematsu vs. U.S.*, the Supreme Court decided that internment was not based on race but was necessary because the country had to be kept safe during the war, Korematsu’s effort was not successful and he was sent to an internment camp. This concerned those who saw the Court taking away civil rights that were supposed to be protected by the constitution. Denying rights to a group of people based on their race should have been a violation of the 14th Amendment. In time the ruling in *Korematsu vs. the U.S.* was seen as one of the worst Supreme Court rulings in history along with *Dred Scott v. Sanford* and *Plessy vs. Ferguson*. In 2014 Karen Korematsu daughter of Fred Korematsu penned a NY Times Op Ed discussing the actions taken by the Court in another civil rights case. She was still making an effort to publicize the unfairness of internment and was standing up for what was right in criticizing the court for its discrimination against Muslims just as her father stood up for what was right. In response to the reaction of the Korematsu ruling Chief Justice John Roberts stated that the decision was “gravely

wrong." Although early efforts to address the restriction of Japanese American civil liberties were not successful in the 1940s they did eventually lead to serious rethinking of the issue in the 1980s. The US government tried to reconcile and acknowledge the grave mistake the US had made some 40 years ago when Korematsu's conviction for not obeying the executive order was overturned by a federal court. In 1980 a special commission looking into Executive Order 9066 and the conditions surrounding internment was set up and their findings were published. Their report found that FDR's executive order was issued out of paranoia, racism, and was an unwise and unjustified attempt to appease the hysteria of the time. 6 years later in 1988, President Ronald Reagan openly condemned the removal and apologized on behalf of the nation. Congress also reimbursed the 60,000 surviving Japanese Americans who were affected by internment as a sign of reconciliation. Besides efforts of the government, ordinary citizens also contributed to the discourse exposing the injustices done by the US government towards the Japanese. Since the 1960s into the present, numerous books and publications have been put into circulation regarding the violation of civil liberties in Japanese internment camps. According to writer Richard Reeves, the reason why this boom in books regarding the controversy sprung up was due to curiosity of young relatives regarding the experiences of their elders. Their children were intrigued and horrified about their relatives experiences and started writing books to expose and make universally known the injustices perpetrated by the USA during WWII. They hoped that a situation like this would never happen again. However, in 2018 Karen Korematsu was concerned that the Supreme Court upholding President Trump's

executive order banning Muslim travel was a continuation of unjust treatment towards “another marginalized group.” What happened to the Japanese Americans despite exposés could happen again because during stressful times the public and the government might look for another group of people to blame. As individuals we should try to treat people with fairness and compassion.

Anchor Level 5

The response:

- Thoroughly develops all aspects of the task evenly and in depth for the restriction of Japanese American civil liberties during World War II
- Is more analytical than descriptive (common practice to debate controversial past of not upholding civil liberties; United States acted against its ideological philosophy of being nation of liberty and rights; controversy regarding federal power to restrict civil liberties during times of war led to more informed and skeptical public willing to question government; efforts to bring to light why internment unjust, immoral, and unconstitutional; Korematsu argued basic rights such as due process; seemed to Korematsu that facts did not matter as Japanese Americans were law-abiding patriotic American citizens; *Korematsu* case decided internment not based on race but necessary to keep country safe; Karen Korematsu publicized unfairness of internment by criticizing Supreme Court for discrimination against Muslims just as her father stood up for what was right; although early efforts to address restriction of Japanese American civil liberties not successful they led to serious rethinking of issue in 1980s; special commission found executive order issued out of paranoia, racism, and hysteria; Karen Korematsu concerned Supreme Court's banning Muslim travel continuation of unjust treatment towards "another marginalized group")
- Incorporates relevant information from all the documents
- Incorporates substantial relevant outside information (American Japanese relations deteriorated due to Japanese imperial aggression in 1930s; ultra-nationalism and militarism gripped Japan who felt cheated out of "deserved territory" after "Great War"; atrocities committed by Japanese, such as Rape of Nanjing and Panay incidents, drew criticism from United States; even though Japan apologized for Panay incident and paid for damages to ship, relations between two countries further soured when Japan annexed French Indo China, United States retaliated by limiting trade with Japan; hoping to deliver decisive knockout blow to America's Pacific fleet, Japan launched surprise attack on Pearl Harbor; "yellow peril racism" began many years before Pearl Harbor; denying rights based on race violation of 14th amendment; *Korematsu* ruling seen as one of worst Supreme Court rulings in history along with *Dred Scott v. Sanford* and *Plessy v. Ferguson*)
- Richly supports the theme with many relevant facts, examples, and details (internment enforced under FDR's executive order; Japan attacked United States holdings in Philippines, Guam, and Wake Island; Executive Order 9066 ordered relocation of Japanese American citizens to internment camps; Supreme Court stated internment constitutional; Korematsu not successful and sent to internment camp; in 1980 special commission looking into Executive Order 9066; President Reagan apologized and Congress reimbursed surviving Japanese Americans; since 1960s books and publications put into circulation regarding violation of Japanese American civil liberties)
- Demonstrates a logical and clear plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 5. Document interpretation is supported by relevant outside history, particularly in the evaluation of deteriorating relations with Japan in the 1930s and the exacerbation of "yellow peril racism" that led to internment. Analytic statements surrounding Korematsu's efforts form the basis of a thoughtful conclusion about transparency and reconciliation.

During times of war and fear, there is often a loss of civil liberties. Throughout US history, there have been many wars that have occurred, and with this, some actions were made in haste, which leads to constitutional debates. After the American Revolution occurred, America began to grow as a larger country and slowly it became a world power. More interactions with other parts of the world which sometimes lead to more international problems for US. As a result a war between the US and Japan led to Japanese internment camps, resulting in debates over their constitutionality. There were many efforts by varying groups to address internment including the Supreme Court case *Korematsu vs. US*, and the effort of many Japanese to personally declare loyalty. As a result there was a large impact on American society that ultimately led to doubt over the constitutionality of internment.

There were many international events that stirred up conflict in the 1930s. As the US grew as a world power, following WWI, there was also a large growth of fascism that took place in Europe under Hitler and Mussolini. The fascist powers united together (Germany, Italy & Japan) to go against Great Britain and France (Allied powers). Wilson's League of Nations was rejected by the US after debates with Republicans over reservations and the US became isolated from Europe. After declaring neutrality at the beginning of WWII, some interventionist policies took hold, including the Lend-Lease Act & Cash & Carry Act, which aided the Allies. However, the main blow came at Pearl Harbor in 1941. Japan violated the peace between them and the US by bombing Hawaii, killing American soldiers & sinking ships (Doc 1). Because of the setback that occurred, the US entered WWII to defeat

Japan and to protect citizens. War with Japan meant the internment of Japanese Americans began to take hold. US leaders thought it was a way to protect America from another Japanese attack. Japanese Americans were forced to relocate to internment camps (Doc 2a). This measure was taken in a rush and later there was much disagreement about whether it was necessary or constitutional.

In order to address this issue of Japanese internment camps, there were many actions taken against it. For example, some Japanese Americans declared their loyalty to the US by placing "I am an American" signs in front of their stores, however, the stores were usually closed because their owners were sent to camps. (Doc 2b) After the attack on Pearl Harbor, America placed strict restrictions on the Japanese as they feared that they could invade the US from the inside. Despite Japanese Americans being peaceful, the US gov't still took cautionary measures which came with some resistance. Fred Korematsu refused to relocate as he thought that it was unfair for Japanese Americans to be imprisoned without a fair trial (Doc 3a). Because of his protest, in response to the executive order 9066 which was given by President Roosevelt, the case Korematsu vs. US was argued by the Supreme court. They upheld the EO 9066 as they quoted it was a "necessary wartime measure." After this case was decided some criticism came about. Eleanor Roosevelt and others believed that the US cannot progress if it looked down on certain groups, in this case the Japanese Americans.

With the unfair treatment of many Japanese Americans, becoming more known and understood many efforts were made that attempted to address it. For example, there were books & memoirs of

Japanese Americans that were in the camps that began to be published, organizations were created, letters were published, & museums were open (Doc 4). Although the US tried to conceal many of the details of this disgraceful action, there were still sources such as photographs and documents that existed to expose the wrongdoings of the U.S. government toward Japanese Americans. Along with that, there were investigations that occurred in the 1980s that looked further into the overall government decisions that led to internment. According to the commission on wartime relocation, they declared the Executive Order 9066 to be not justified by military necessity as the decisions were rather influenced by racial prejudices and a failure of political leadership (Doc 5a). Many people beside Japanese Americans saw the internment as unjustified as it was restricting the rights of innocent American citizens based on the event of Pearl Harbor, which was the result of another country, not the people living in America. There was also the issue being brought up in the case of Korematsu vs. US that the order to move into camps happened without a jury trial and shows how the internment was done because of race not because Japanese Americans were dangerous. (Doc 5b) Because of the unfair treatment, there was a restitution payment given to the Japanese Americans, however in reality, the payment would not make up for the amount of years that the Japanese Americans were denied their proper civil rights and normal lives. With much discussion, a Commission's review, and after 75 years, the court was overruled in the "court of history" and as it does not have any place in law under the constitution (Doc 6). There was a sense of inhumanity in the relocation of Japanese Americans, however it did not represent a shift in American society as civil liberties

were often denied during times of fear, and in this case, the Japanese Americans were innocent victims of the deadly event that led to the US involvement in WW2. Wartime fear was not the only time a group in America was not treated fairly as might be expected in a democracy. Cherokees were forcibly removed from their homes and sent on the Trail of Tears that many didn't survive.

Although US initially declared neutrality at the beginning of WW2, due to the main event of Pearl Harbor, US was prompted to join the war and as a result of fear, the Japanese internment camps were established. With this in place, there were many personal responses to that government decision, including Japanese declaring their loyalty, and government responses such as Korematsu vs. US that upheld the internment camps. But after more thought & reconsidering, the decision was eventually discredited, representing a shift in American ideals and values, when it came to wartime mistreatment of Japanese Americans. However, it does not discredit the fact that during times of fear, civil liberties will probably be denied for some.

Anchor Level 4

The response:

- Develops all aspects of the task for the restriction of Japanese American civil liberties during World War II
- Is both descriptive and analytical (during times of war and fear often a loss of civil liberties; during war actions sometimes made in haste; United States leaders thought internment a way to protect America from another Japanese attack but it raised disagreement about whether necessary or constitutional; Japanese Americans faced strict restrictions as people feared Japan could invade from inside country; Eleanor Roosevelt and others believed America could not progress by looking down on certain groups; United States tried to conceal many details about internment but not successful; many saw internment as unjustified as it restricted rights of innocent American citizens based on race not because Japanese Americans dangerous; wartime fear not only time a group in America not treated fairly as might be expected in a democracy)
- Incorporates relevant information from all the documents
- Incorporates relevant outside information (after American Revolution America began to grow and slowly became a world power with more interactions with other parts of the world, which sometimes led to more international problems; fascist powers (Germany, Italy, and Japan) united against Great Britain and France; Wilson's League of Nations rejected by United States after debates and United States became isolated from Europe; at beginning of World War II some interventionist policies took hold such as Lend-Lease and Cash and Carry; Cherokees forcibly removed from homes and sent on "Trail of Tears" which many did not survive)
- Supports the theme with relevant facts, examples, and details (war between United States and Japan led to internment camps and debates over their constitutionality; Supreme Court case *Korematsu v. the United States* tried to address situation; Japan bombed Pearl Harbor in 1941, killing soldiers and sinking ships; Japanese Americans forced to relocate to internment camps; Fred Korematsu refused to relocate because he thought there should be fair trial; Executive Order 9066 upheld by Supreme Court as necessary wartime measure; books and memoirs published about Japanese American experiences in internment camps; museums opened and letters published; investigations in 1980s looked further into government decisions that led to internment)
- Demonstrates a logical and clear plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 4. Thoughtful analysis supports relevant document quotations and conclusions about the historically unfair treatment of different groups in our democracy. Relevant outside information supports the historical context and is included in the discussion of circumstances surrounding the internment, but the response would benefit from additional supporting facts and details.

During times of national crises, our country takes many precautions to ensure the safety of our citizens sometimes including limiting civil liberties. This can be observed in the 1950s Red Scare - when we worried about communism as the cold war intensified. The idea of Nationalism expanded during times of war and guaranteed freedoms were not necessarily guaranteed. The government's right to limit civil liberties in times of war to preserve our nation's peace is a repeated theme in our country's history. One such instance is in World War II, when the U.S. engaged in the mass internment of Japanese American residents after the fear intensified with the attacks on Pearl Harbor.

After the Pearl Harbor bombings, our nation was in fear of another attack on U.S. soil. This was especially true as the war was quickly progressing with Japanese attacks on Guam, Wake, and Midway Islands (Doc 1). The idea of the U.S. security being under threat was real. This made the U.S. be suspicious of those who might be related to the attacks. Pearl Harbor brought a declaration of war on Japan and soon after the Asia Powers (Doc 1).

As the U.S. began our war efforts, another possible danger was looming in our homeland. FDR imposed the executive Order 9066 to address war hysterias. (Doc 5a) The order brought the mass internment of persons of Japanese ancestry to internment camps. Because our nation was in a very real crisis internment of American citizens and others who did nothing wrong was tolerated. Some would say that our country was being unAmerican, as we discriminated against a racial group in times of war. However, since the beginning of our country we have not always treated all races and groups with respect as can be

seen in the way colonists treated Native Americans and the way Jews and Catholics have been treated. (Doc 4) The internment of Japanese Americans still is a debate, as the Japanese might have been a threat to U.S. peace. The country was afraid and people weren't sure of what would happen next.

As the Japanese were placed into internment camps by the government it sparked some controversies. The Japanese argued that they were just as American, and must be seen as citizens with equal rights. They argued that they must not be denied their civil liberties merely on the basis of race. Eleanor Roosevelt was an advocate of this idea: that the American people must not see distinctions between colors. (Doc 3b). Japanese business people such as grocers protested in quiet ways urging their customers to support them as American and arguing that they must not be discriminated against because of their race (Doc 2b). Their race alone was not enough to cause a reason for their internment. Soon, a Japanese American citizen who had been ordered to report for internment argued against his arrest by the police. In *Korematsu v. U.S.* Fred Korematsu fought against discrimination as he was an American with Japanese parents and with a clear opinion that relocation was about a racial dilemma not a national crisis. (Doc 3a). However, despite this reasoning the U.S. Supreme Court ruled in favor of the U.S. to limit civil liberties to ensure the nation's safety. Another way the Japanese sought to publicize their discrimination was through literature. The Japanese Americans also formed organizations and shone light on their experiences through oral history projects, museums, and literature (Doc 4). Yet, despite Eleanor Roosevelt, Fred Korematsu and others, the U.S. did not end their internment of the

Japanese until the war was almost over.

Eventually, 75 years later, the U.S. Supreme Court said that the court decision in Korematsu vs. U.S. was wrong. This opinion was stated in another case that marginalized another minority- Muslims. (Doc 6) Learning about the experiences of internment survivors convinced many that what the U.S. did was wrong. However, the issue still holds true that during times of fear, civil liberties will probably be limited. And when our national security is at stakes we will enforce policies that place national safety over our citizens rights.

Anchor Level 3

The response:

- Develops all aspects of the task with some depth for the restriction of Japanese American civil liberties during World War II
- Is both analytical and descriptive (during times of national crisis, our country takes many precautions to ensure safety of its citizens, sometimes including limiting civil liberties; idea that nationalism expanded during times of war and guaranteed freedoms not necessarily guaranteed; government's right to limit civil liberties in times of war to preserve our nation's peace repeated theme in country's history; after Pearl Harbor bombings United States in fear of another attack on U.S. soil; idea of United States security being under real threat made United States suspicious of those who might be related to attacks; Franklin D. Roosevelt imposed Executive Order 9066 to address war hysteria; because United States in very real crisis internment of American citizens and others who did nothing wrong tolerated; some would say our country being un-American as we discriminated against racial group; since beginning of our country not always treated all races and groups with respect as can be seen in ways colonists treated Native Americans and the way Jews and Catholics have been treated; internment of Japanese Americans a debate since Japanese might not have been a threat to United States peace; country afraid, people not sure of what would happen next; Japanese argued they were as American as any other and must be seen as citizens with equal rights and should not be denied civil liberties merely on basis of race; Korematsu argued relocation a racial dilemma not a national crisis; Supreme Court ruled against Korematsu and in favor of United States limiting civil liberties to ensure nation's safety; learning about experiences of internment survivors convinced many that actions of United States were wrong; when national security at stake civil liberties will probably still be limited)
- Incorporates some relevant information from all the documents
- Incorporates some relevant outside information (in 1950s Red Scare United States worried about communism as Cold War intensified; Pearl Harbor brought declaration of war on Japan, and Axis powers soon after)
- Includes some relevant facts, examples, and details (mass internment of Japanese American residents during World War II after fear intensified with attacks on Pearl Harbor; fear increased as war quickly progressed with attacks on Guam, Wake, and Midway Islands; Executive Order 9066 brought mass internment of persons of Japanese ancestry to internment camps; Eleanor Roosevelt advocated idea that American people must not see distinctions between colors; Japanese American business people urged customers to support them arguing they should not be discriminated against because of race; Japanese American citizen Korematsu argued against his arrest; Japanese Americans formed organizations and shared experiences through oral history projects, museums, and literature; in a court case that marginalized Muslims, Supreme Court admitted decision in Korematsu wrong)
- Demonstrates a satisfactory plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 3. Interpretation and analysis of document information demonstrates good understanding of the task. The link between national security and limitation of citizen's rights during times of crisis is identified but would have benefited from additional analysis and outside information.

The internment of Japanese-Americans was the direct effect of widespread fear among Americans, a fear that was not founded upon fact but upon prejudice. The restriction of J-A civil liberties during WWII has led to new civil liberty arguments and regulation attempts by the citizens and government alike.

Internment came about in 1942, following the bombing of Pearl Harbor. Americans were thrust into yet another worldwide war. There was already a long history of Anti-Asian sentiment within the US conscience, such as the Chinese Exclusion Act, but these prejudices were exacerbated by the Japanese attack on US territory. Rather than recognizing J-As as fellow US citizens, many felt that locking away J-As on the small chance that they were a spy would fulfill their "obligation to our country" (Doc 1). An official law was passed that required J-As to leave everything but the most basic possessions behind and to report to designated camps (Doc 2A). There, US citizens were forced to live in poor conditions underneath the scathing eyes of armed guards.

One J-A, Fred Korematsu, argued against the internment, saying J-As should've been given a, "fair trial to prove their loyalty!" (Doc 3a). However, the Supreme Court shot his idea down, saying an unfair institution was constitutional. Although attempts at reparations were later made 1988, when payments were made and apologies were given, nothing could change the humility and injustice many J-As were forced to endure 40 years earlier (5b).

The implications of J-A interment remain today. With the Supreme Courts approval of banning Muslim travel from countries with high Muslim populations, it seems people have not learned from the mistakes

of the past. Let us hope that this nation will not be scarred further by injustice.

Anchor Level 2

The response:

- Minimally develops all aspects of the task for the restriction of Japanese American civil liberties during World War II
- Is both analytical and descriptive (internment a direct effect of widespread fear among Americans, a fear not founded upon fact but upon prejudice; restriction of Japanese American liberties during World War II led to new civil liberty arguments and reparation attempts by citizens and government; Pearl Harbor thrust Americans into yet another worldwide war; rather than recognizing Japanese Americans as fellow citizens many felt that locking them away on the small chance they were spies would fulfill “obligation to our country”; in internment camps Japanese Americans forced to live in poor conditions underneath scathing eyes of armed guards; Supreme Court shot down Korematsu’s idea that Japanese Americans should be given fair trial to prove loyalty; although reparation payments made and apologies given nothing could change injustice many Japanese Americans forced to endure years earlier; implications of Japanese American internment remain today with Supreme Court’s approval of banning Muslim travel from countries with high Muslim populations as it seems people have not learned from mistakes of the past)
- Incorporates limited relevant information from documents 1, 2, 3, 5, and 6
- Presents little relevant outside information (long history of anti-Asian sentiment within United States conscience such as Chinese Exclusion Act but prejudices exacerbated by Japanese attack on United States territory)
- Includes few relevant facts, examples, and details (internment came about following bombing of Pearl Harbor; official law passed requiring Japanese Americans to leave everything but most basic possessions behind and report to designated camps)
- Demonstrates a general plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 2. An understanding of the relationship between the documents and the task is demonstrated, but analytic statements are often presented with minimal or no explanation. A few limited pieces of relevant outside information are included but a lack of supporting facts and details weakens the effort.

The internment of nearly 120,000 Japanese Americans after the attack on Pearl Harbor was unjust in many ways. Not only were they forced to leave the properties they owned, they were also forced into camps and restricted from leaving without a fair trial and chance to prove whether they were in support of America or not.

There are many examples from all of the documents. One example is that in Document 5a it says that the broad historical causes which caused the internment of Japanese American were racial prejudice and war time hysteria. It also says that the internment of Japanese Americans was unconstitutional because not a single person was given a trial to prove whether or not they were in support of America. They were forced into camps just on the assumption that they were against America because they were Japanese. Some efforts of the later generation of Japanese Americans to bring this injustice to light was stated in Document 4. The document said that they wrote books and lobbied in order to bring the injustice of Japanese internment to life. Some efforts that the United States took to resolve the issue in 1988 were that they held a public conference. And gave money back to the 60,000 Japanese Americans who were left alive of the 120,000 Japanese Americans that were still alive. The United States also gave informal apology on that day saying that the country had done the Japanese Americans a great injustice and that it will never happen again.

During times of war many things can provoke a government to do irrational things. This is why you have to know your rights and if an injustice is being done you can bring it to court or refuse to do what it is they are asking you to do.

Anchor Level 1

The response:

- Minimally addresses all aspects of the task for the restriction of Japanese American civil liberties during World War II
- Is descriptive (internment of nearly 120,000 Japanese Americans after attack on Pearl Harbor unjust in many ways; broad historical causes of internment racial prejudice and wartime hysteria; forced into camps on assumption they were against America because Japanese; informal apology given by United States that great injustice done to Japanese Americans; during times of war many things can provoke government to do irrational things); lacks understanding and application (not a single person was given a trial to prove whether they were in support of America)
- Includes minimal information from documents 1, 2, 4, and 5
- Presents no relevant outside information
- Includes few relevant facts, examples, and details (internment of nearly 120,000 Japanese Americans; Japanese Americans forced to leave properties they owned and forced into camps; later wrote books and lobbied to bring injustice of internment to life; public conference to give money back to Japanese Americans still alive)
- Demonstrates a general plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 1. While all aspects of the task are referenced, lack of explanation detracts from the effort. Brief statements of document information indicate a minimal understanding of the restriction of Japanese American civil liberties but are limited in scope and lack details.

The United States is a Democracy that generally sticks up for human rights. However, there have been instances when an ethnic group was denied these rights for various reasons, leading to protests that had varying degrees of success. When Japanese-Americans were forced into internment camps due to Japanese aggression during World War II, some opposition arose but more resurfaced in later years, leaving an impact on the country.

American aid to the Allies during World War II led in part to the Japanese attack on Pearl Harbor, which caused President Roosevelt's decision to segregate Japanese-Americans in camps. Although the United States attempted to remain neutral at first, laws like Cash and Carry and the Lend-Lease Act allowed for financial and military aid to the Allies fighting Nazi Germany, an ally of Japan. However, most Americans preferred to stick with the isolationist foreign policy set by President Washington, and keep out of war but slowly the United States became less neutral. Japan also began fearing the American global presence. The U.S. had military bases in the Pacific in Guam and the Philippines. The Japanese were afraid of an American attack as they moved to take oil and natural resources from countries in the South Pacific and were angry at trade embargoes, therefore they chose to act first. In 1941, they launched a surprise attack on Pearl Harbor, a U.S. military base in Hawaii. They destroyed valuable ships and planes, and took the lives of many innocent soldiers. (Doc. 1) Americans were horrified and outraged over the attack, which obviously drew the country into war. On December 9, 1941, in one of his famous Fireside Chats, President Roosevelt discussed the United States declaration of war and the challenge the country faced. (Doc

1) The attack brought resentment among Americans toward not only the nation of Japan but also Japanese Americans who they thought could not be trusted. West coast residents were particularly afraid because that was where most Japanese Americans lived. Japanese Americans living in states such as California had experienced years of racial discrimination and hostility. Seen as economic competitors laws were passed that made it difficult for Japanese Americans to own land or become citizens. The government's attitude was that Japanese Americans were capable of espionage and disloyalty although none were accused of sabotage or other dangerous activities. Therefore, it set up internment camps by executive order to house Japanese-Americans who would be forced to leave their homes, jobs, and schools. This would keep them safely contained from angry Americans and from harming national security. With almost no debate evacuees were given a few days notice, after which they had to report to a control-center for placement (Doc. 2a) where they would be assigned to camps with unpleasant conditions in remote areas. Although authorities argued that this order was a military necessity and was vital for public safety during wartime, not everyone agreed with their claim.

Fred Korematsu was a Japanese-American who refused to comply with the military order to relocate and even filed a lawsuit challenging its constitutionality. Korematsu was a full-fledged American citizen who was ordered to join the evacuees because of his Japanese descent. With astonishing stubbornness, Korematsu gathered the nerve to defy orders, and refused to relocate to a Japanese camp. He was arrested and insisted that as a citizen he had the right to due process. In a case, known as *Korematsu vs. United States*, he argued that those camps

are considered prisons, since they are under constant guard. If every prisoner in the U.S. is entitled to a fair trial in court, the Japanese deserve the same! (Doc 3a) He believed that putting any and every individual with any remote relation to Japanese ancestry under heavy guard was pure racial discrimination. He believed that Japanese Americans were loyal to the U.S. Korematsu even tried to join the navy to fight Japan and thousands of others enlisted in the military while their families were living in camps. Why do they deserve punishment for something they had no part in? Korematsu's arguments which were strong, did not prevail immediately but were validated decades later. There weren't many who were as bold as he was. His act of civil disobedience was all about standing up for what is right and to fight injustice (Doc. 6)

Nearly twenty years later, though, more public outcry did resurface. When the Japanese Americans were first interned not many Americans truly understood what living in the camps was really like. Slowly, details and stories of the horrible conditions in the internment-camps emerged, and specifically Americans of Japanese descent sought to expose it as an attempt to protest and rectify the wrong. They published diaries written in the camps, and implemented history-projects in schools, for children to discover the stories of their grandparents. (Doc. 4) They wanted the government to apologize publicly, so that another violation of human rights of this sort wouldn't happen again. As blacks rallied against Jim Crow laws, voting restrictions, and inequality in the 1960s, Japanese-Americans were inspired to rally to raise awareness of the denial of the rights of their ancestors during World War II. Like the African-Americans, their goal was the same;

they wished to end racial injustice to prevent this from occurring again.

Korematsu's case was unsuccessful, but the protests in the 1960s brought the injustice up again, and in the 1980s resulted in apology and reimbursement. Although Fred Korematsu tried to fight for his people, his efforts didn't have much impact at the time; the Supreme Court ruled that internment was legal and necessary during wartime. However, the efforts of Japanese-Americans in later years did play a role in the history of the U.S. Public opinion became critical of the government's decision to detain the Japanese during the war, and many American openly declared their new views. A government commission researched the issue and concluded that "the promulgation of Executive Order of 9066 was not justified," (Doc. 5a), and Congress agreed to reparation payments for Japanese Americans. In August of 1988, President Reagan went a step further and publicly admitted that the government had erred and agreed with Congress that restitution payments should be given to Japanese American survivors as an apology. Retroactively, this wasn't too helpful but it did demonstrate some remorse for Japanese American internment. Monetary awards could never make up for the personal losses that internment caused the Japanese Americans. Perhaps more significantly in 2018 the Supreme Court reviewed another executive order and mentioned that the Korematsu's decision was gravely wrong. The Supreme Court finally agreed with Fred Korematsu. (Doc. 6) Chief Justice Roberts declared that the original ruling has no place in law under the Constitution." (Doc. 6) Although these actions can't undo the violations of civil liberties the government is responsible for, it reflects an understanding of how

wrong the government actions were in the 1940s.

The cause for the evacuation of 120,000 Japanese-Americans during World War II may have been valid according to some considering the circumstances but individuals like Korematsu and others in later years felt otherwise. This case of human right violations proves that the efforts of an individual to challenge injustice may seem hopeless at first, but can, with the passage of time, be successful. President George Bush did not intern Muslims after 9/11 which was very different from Franklin D. Roosevelt's response after Pearl Harbor. Another "grave injustice" was avoided.

Throughout United States history, Americans are sometimes quick to react and pounce on those who are different. This issue becomes apparent when specific groups are targeted based on the prejudices of the public. The civil liberties of the Japanese Americans were lost and violated during World War II because of the lack of trust and impulse control of some Americans. The Japanese-Americans were forced into internment camps out of the blind fear of Americans that was a result of Pearl Harbor.

America was not directly involved in World War II, at first. The United States, while having some sympathy for Allied forces, did not want to partake in the war in the 1930s. At that time, America was going through a period known as the Great Depression. Many did not think it was wise to join a war when times were bad for people in the United States and that was not even affecting them. But that all changed on December 7th, 1941. It was early Sunday morning when the Japanese bombed Pearl Harbor and caused immense chaos. Many soldiers lost their lives or were severely injured. A large quantity of supplies and ships were destroyed by the bombs. The Japanese had been planning this attack, but the attack united Americans and ended neutrality because Pearl Harbor was an attack of troops on American soil and was devastating to the public. Just two days later during one of his signature fireside chats, President Franklin D. Roosevelt announced that "the Japanese have treacherously violated... us...we are now in this war. We are all in it all the way. Every single man, woman, and child is a partner in the most tremendous undertaking of... [fulfilling] his obligation to our country." (Doc 1) The Americans were fuming over the Japanese's actions and as a result, the Japanese-

Americans paid the price. Just as President Roosevelt used a lot of power to try to end the Great Depression, he now used his power as president to create Executive Order 9066.

Japanese-Americans were stripped of their liberties as a consequence for Japan's actions. On April 1st, 1942, "instructions to all persons of Japanese Ancestry" (Doc 2) were given by the "Western Defense command and Fourth Army Wartime Civil Control Administration."

(Doc 2a) In these instructions, Japanese-Americans were told that "all Japanese persons, both alien and non-alien, will be evacuated" (Doc 2a) from specific areas that were listed. From there, the Japanese-Americans were placed under "an imprisonment under armed guard with orders shoot to kill ... [without] a fair trial ... [so] that they would not be able to defend their loyalty at court in a democratic way...." (Doc 3a)

That is why Fred Korematsu, a Japanese American, decided to make himself a test case by not agreeing to be interned. The new homes for Japanese Americans became known as "internment camps" (Doc 3b) which they were not allowed to leave. They were not allowed a chance to defend themselves in a court of law which is a constitutional right - due process. Habeas Corpus, while in full effect and guaranteed in the Constitution was not given to the Japanese-Americans during this time. The first lady at the time, Eleanor Roosevelt, "visited [the] Gila River Internment Camp" and expressed concerns about constitutional freedoms (Doc 3b). She made it abundantly clear during her visit that "we cannot progress if we look down upon any group of people amongst us because of race or religion. Every citizen in this country has a right to our basic freedoms, to justice and to equality of opportunity." (Doc 3b) She was trying to get the government and the public to understand

that by taking away Japanese American rights that they were acting solely on racial prejudices that Japanese-Americans had faced even before WWII. If we expect freedoms as citizens of the United States we have to grant them to others as well and that includes Japanese-Americans. (Doc 3b) They were still people and citizens of the United States which means that they should automatically receive rights such as a fair trial. Japanese-Americans were being punished for just being of Japanese ancestry. Fred Korematsu tried “contesting relocation” (Doc 3a) but he lost his case against the government in 1944 but seemed to win it in 2018 many years after internment ended. (Doc 6)

The actions that America took in response to Pearl Harbor just solidifies the ideal that “there is always the possibility of similar prosecutions happening... if fear and hysteria overwhelm” (Doc 4) the American public. It installed a fear that America might impulsively react and act out against those who resemble their enemies in some way. The government, years later, finally recognized and acknowledged it’s mistake when Ronald Reagan announced “a restitution payment to each of the 60,000 surviving Japanese Americans of the 120,000 who were relocated or detained.” (Doc 5b) He, representing the United States government, stated his regret over taking away basic civil liberties of Japanese-Americans and attempted to fix it by giving payments to Japanese-Americans who were victims of widespread ignorance. (Doc 5a)

Throughout United States history, many constitutional and civic issues have been debated by Americans. These debates resulted in groups, individuals and government taking actions. One example of this was the attempt to address the restriction of Japanese Americans civil liberties during the second world war and right after the bombing of pearl harbor.

When World War II started, America at the time was in a state of neutrality. The US was trying to keep themselves out of European affairs and was staying away from its conflicts. Though Congress passed Neutrality Acts, President Franklin D. Roosevelt seemed to know what was to come and did not think he could keep America out of the war. He was preparing for the worst but hoped by sending supplies to help England and France fight Germany the US could avoid war. As the war in Europe continued, Japan, a small country not seen as much of a danger and made up of small islands, was in its age of imperialism. They were also in an alliance with Germany, which complicated the relationship we had with Japan and later on caused the US to cut off oil trade with Japan. This made Japan unsettled as they depended on foreign trade for goods since Japan was lacking in many natural resources. Japan then started to plan out an attack on the US which soon to become known as the events of pearl harbor. The bombing of pearl harbor caused many deaths and sinking of important military battle ships used to protect the west side of the United States and our possessions such as the Philippines and Guam. From this event the United States Congress had to declare war, leading to FDR's Fireside Chat that explained why the United States would be joining the war (Document 1).

Once the United States had joined the war, there were many suspicions that there were spies lurking for top secret information that could be important for the enemy. It was thought that after the surprise attack on Pearl Harbor, Japanese Americans in states on the west coast could be dangerous and they became the main focus for this fear as the two countries were at war with each other. Some thought the Japanese might try another surprise attack in America. Due to this the Japanese race was the enemy and many Japanese Americans living in San Diego County and other areas on the west coast were forced out of their homes into internment camps by the US army on orders from the President. Even if Japanese Americans were shown to be loyal to the United States by trying to enlist in the military it would not be enough to get them out of reporting to the camps (Document 2b). The conditions in these camps were awful but not evil like the concentration camps Jews found in Germany, but that doesn't mean that forcing innocent American citizens to live like prisoners was acceptable. Japanese Americans were taken from their homes, forced to leave their lives behind and everything they worked for. Fred Korematsu as an individual took a different kind of action. He saw the internment as unjust because Japanese Americans weren't given any trial or way to prove that they weren't a spy or held a loyalty to the enemy (Document 3a). Without any real reason other than we were at war with Japan, Japanese Americans were interned only because of their ethnic background. It was an example of the "dark side" of the American way. (Document 4) Korematsu's action to not obey the government internment policy led to a case in the Supreme Court challenging his arrest and conviction because he believed what happened to him and

others was unconstitutional. Later on after the dropping the atomic bomb on Japan twice, the deadliest war in history had finally ended. America would then stop with the internment camps but not until 40 years later would many Americans see that the treatment of fellow Americans during the war was not right.

Anger toward Japan did not end with the war but more Americans began to realize that the treatment of Japanese Americans was unjust. During the 1960s more Americans were questioning the way things were. Young African Americans were organizing to make people aware of inequality and racism. Young Japanese Americans were also discovering the treatment of their families during WWII and questioning the constitutionality of internment. Books and articles would be published to spread awareness of the impact internment had on Japanese Americans (Document 4). More understanding would lead them to a commission that decided the government did not have evidence that Japanese Americans had done anything wrong and their internment was not a military necessity (Document 5a). This led to the restitution payment provided by Congress to surviving internees or about 60,000 Japanese Americans (Document 5b). This was important because "In Personal Justice Denied" issued by the Relocation Commission it was concluded that widespread ignorance of Japanese Americans contributed to making a bad policy (Document 5a). Equal justice under law continues to be a foundation of democracy. However, people are still claiming discrimination in court cases. 75 years after Korematsu Muslims as a religious group were discriminated against by an executive order just like the Japanese Americans as an ethnic group were discriminated against by Executive Order 9066 (Document

6). In continuing debates over DACA anti-immigrant opinions are often expressed in the United States. Richard Reeves believes that persecutions can happen again because of "fear and hysteria" (Document 4). Apologies do not necessarily end discrimination against immigrants, races, or ethnic groups. These are the impacts made by the civic issues of Japanese Americans.

In the early 1940's a surprise attack was launched by Japan on the United States. This bombing on Pearl Harbor destroyed many military structures and took the lives of many. As a result, the United States took precautions that would increase its safety, even if it meant using unconstitutional efforts (Doc. 1). This excerpt explains how the United States reacted to the bombing of Pearl Harbor. He explains that the safety of Americans was his top priority.

The descrimination of Japanese Americans was a large result the attack on Pearl Harbor. For example, the poster explains how Japanese Americans had to leave their homes by force (Doc. 2a). This explains how a certain group was deprived of their rights, even if they were legal citizens. There was also a great deal of social descrimination. Japanese Americans were often denied services. The photo explains how stores only allowed service to Americans (Doc 2b).

Although the United States heavily discriminated Japanese Americans, they did recognize their wrong doing. The excerpt shows how the United States apologized and how they explained that their actions were not justified (Doc. 5a). Pearl Harbor lead to a direct internment and discrimination of Japanese Americans. Americans saw evil in people from Japanese descent during the time period.

The internment of Japanese Americans was a result of the failure of the law to uphold the rights of Americans.

The decision to evacuate Japanese Americans to internment camps came as a result of the surprise attack on Pearl Harbor by Japan, beginning American involvement in World War II. The unjust incarceration of Japanese Americans resulted from a combination of racial prejudice and war hysteria (Document 5a). This injustice was fought against by some Japanese Americans, such as Fred Korematsu, who began a legal battle to show the injustice of the internment. He tried to show that those of Japanese ancestry despite being loyal Americans who should have all the rights of any other citizen, were imprisoned without trial (Document 3a). Today, the injustice seems obvious, but during the time period, racial prejudice was high after the Japanese attack. More than 40 years after the events President Reagan attempted to monetarily compensate those who were imprisoned (Document 5b), but as he says the document “no payment can make up for those lost years.” Another more recent effect of the internment was the citing of Korematsu’s case during the ban of travel to the United States from predominantly Muslim countries. (Document 6) This continuation of injustice and racial prejudice almost 70 years after the internment of Japanese Americans shows that there is still prejudice and that some laws of today have still yet to learn the lessons of the past.

Japanese internment is a scar on American honor, despite it being impossible to undo what happened, it is still possible to learn from it and make sure the law is just for all.

Practice Paper A—Score Level 5

The response:

- Thoroughly develops all aspects of the task evenly and in depth for the restriction of Japanese American civil liberties during World War II
- Is more analytical than descriptive (United States democracy generally supports human rights; when Japanese Americans forced into internment camps some opposition but more resurfaced in later years; Pearl Harbor brought resentment among Americans toward Japan and also Japanese Americans; West coast residents fearful because most Japanese Americans lived there; attitude that Japanese Americans capable of espionage and disloyalty; authorities argued executive order military necessity for public safety; Korematsu insisted as citizen he had right to due process and a fair trial; Korematsu's arguments strong but did not prevail immediately; Korematsu's act of civil disobedience about standing up for what is right; Japanese Americans wanted government to apologize publicly so another violation of human rights would not happen again; restitution payments demonstrated some remorse but could never make up for personal losses; 2018 decisions reflect understanding of how wrong government actions in 1940s were)
- Incorporates relevant information from all the documents
- Incorporates substantial relevant outside information (aid to Allies led in part to attack on Pearl Harbor; although United States at first neutral, Cash and Carry and Lend-Lease allowed for financial and military aid to Allies; most Americans preferred isolationist policy set by President Washington but slowly United States became less neutral; Japan afraid of American attack as they moved to take oil and natural resources from countries in South Pacific; Japanese Americans living in states such as California experienced years of racial discrimination and hostility; laws passed made it difficult for Japanese Americans to own land or become citizens; Japanese Americans assigned to camps in remote areas; thousands enlisted in military while families in camps; as blacks rallied against Jim Crow laws, voting restrictions, and inequality in 1960s, Japanese Americans inspired to raise awareness of denial of their rights during World War II; President Bush did not intern Muslims after 9/11 which very different from President Roosevelt's response)
- Richly supports the theme with many relevant facts, examples, and details (internment camps set up by executive order to house Japanese Americans forced to leave their homes, jobs, and schools to keep them safe from angry Americans; Fred Korematsu refused to comply with military order to relocate and filed lawsuit challenging its constitutionality; Korematsu tried to join navy to fight Japan; details and stories of horrible conditions in internment camps emerged; diaries written in camps published and history projects implemented in schools; in 1980s apology and reimbursement for Japanese Americans; in 1988 President Reagan publicly admitted government erred and agreed restitution payments should be made; in 2018 Supreme Court reviewed another executive order and mentioned Korematsu decision gravely wrong)
- Demonstrates a logical and clear plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 5. Substantive relevant information effectively supports document interpretation and an analytical discussion of Japanese American internment. The conclusion that challenges to injustice do not always yield immediate results reflects a good historical understanding of civil liberties as a constitutional issue in United States history.

Practice Paper B—Score Level 3

The response:

- Develops all aspects of the task with little depth for the restriction of Japanese American civil liberties during World War II
- Is both descriptive and analytical (Americans sometimes quick to react and pounce on those who are different; civil liberties of Japanese Americans lost and violated during World War II because some Americans lacked trust; Japanese Americans forced into internment camps because of blind fear; Japanese successful in uniting Americans to go to war because Pearl Harbor devastating attack on American soil; President Roosevelt used power to try to end Great Depression and now used power to create Executive Order 9066; Eleanor Roosevelt tried to make Americans see acting solely on racial prejudice wrong; Eleanor Roosevelt felt if we expect freedoms as citizens we have to grant them to others including Japanese Americans; Eleanor Roosevelt felt Japanese Americans being punished for ancestry; Korematsu lost his case against government in 1944 but seemed to win in 2018; internment instilled fear America might impulsively react and act out against those who in some way resemble their enemies; President Reagan stated regret over taking away basic civil liberties of Japanese Americans and attempted to fix it by giving payments to Japanese Americans who were victims of widespread ignorance)
- Incorporates some relevant information from all the documents
- Incorporates some relevant outside information (America not directly involved in World War II at first; United States while having some sympathy for Allied forces did not want to partake in war as going through Great Depression; many people did not think it wise to join a war when times bad for people in United States since war not affecting them but that all changed on December 7, 1941; Japanese bombed Pearl Harbor early Sunday morning causing immense chaos; habeas corpus while in full effect and guaranteed in Constitution not given to Japanese Americans at this time)
- Includes relevant facts, examples, and details (many soldiers lost lives or severely injured at Pearl Harbor; large quantity of supplies and ships destroyed by bombs; Japanese Americans evicted from listed areas and placed under imprisonment; first lady Eleanor Roosevelt visited Gila River internment camp and expressed concerns about constitutional freedoms because every citizen has right to basic freedoms, to justice, and to equality of opportunity; years later President Reagan announced a restitution payment to each of surviving Japanese Americans)
- Demonstrates a satisfactory plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 3. An effective integration of relevant document quotations is supported by good explanations and outside information which establish the framework for the discussion. Thoughtful conclusions especially in the discussion of historical circumstances would have been strengthened by additional supporting facts and details.

Practice Paper C—Score Level 4

The response:

- Develops all aspects of the task for the restriction of Japanese American civil liberties during World War II
- Is both descriptive and analytical (Roosevelt did not think he could keep America out of war; after surprise attack on Pearl Harbor Japanese Americans in west coast states thought to be dangerous; some thought Japanese might try another surprise attack in America; even Japanese Americans who tried to show loyalty by enlisting in military forced into internment camps; conditions in United States internment camps awful but not evil like camps faced by Jews in Nazi Germany; forcing American citizens to live like prisoners not acceptable; Fred Korematsu saw internment as unjust because not given a trial or way to prove not a spy or not loyal to country unconstitutional; without any reason other than war, Japanese Americans interned because of ethnic background; not until 40 years after war would many Americans see internment as not right; young Japanese Americans questioning constitutionality of internment; commission decided government had no evidence Japanese Americans had done anything wrong and internment not a military necessity which led to restitution payments; equal justice under law continues to be a foundation of democracy; Muslims as a religious group also discriminated against by executive order; apologies do not necessarily end discrimination against immigrants, races, or ethnic groups)
- Incorporates relevant information from all the documents
- Incorporates relevant outside information (United States trying to keep out of European affairs; Neutrality Acts passed to try to stay out of conflicts; Roosevelt hoped U.S. could avoid war by sending supplies to help England and France fight Germany; Japan in its Age of Imperialism and in alliance with Germany complicated United States relationship with Japan and led United States to cut off trade with Japan; young African Americans organizing to make people aware of inequality and racism)
- Supports the theme with relevant facts, examples, and details (bombing of Pearl Harbor caused many deaths and sinking of important military battle ships used to protect west United States and our possessions; many Japanese Americans living on west coast; Japanese Americans forced to leave lives and everything worked for behind; books and articles published to spread awareness about impact of internment on Japanese Americans)
- Demonstrates a logical and clear plan of organization; includes an introduction that is a restatement of the theme and a conclusion that is beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 4. The integration of constitutional principles and historical references to 1960s activism lead to thoughtful conclusions about efforts to address internment. The continuing influence of discrimination in American society is an important concept but would have benefited from additional facts and details.

Practice Paper D—Score Level 1

The response:

- Minimally addresses all aspects of the task for the restriction of Japanese American civil liberties during World War II
- Is descriptive (as result of bombing of Pearl Harbor United States took precautions to increase its safety even if meant using unconstitutional efforts; safety of Americans FDR's top priority; discrimination of Japanese Americans large result of attack on Pearl Harbor; Japanese Americans deprived of rights even if legal citizens; great deal of social discrimination; United States did recognize their wrongdoing and apologized; Americans saw evil in people from Japanese descent during this time period); lacks understanding and application (misinterpretation of document 2b)
- Includes minimal information from documents 1, 2a, 2b, and 5a
- Presents no relevant outside information
- Includes few relevant facts, examples, and details (early 1940s surprise attack launched by Japan on United States; bombing of Pearl Harbor destroyed many military structures and took lives of many; Japanese Americans forced to leave homes; Japanese Americans often denied services)
- Demonstrates a general plan of organization; includes an introduction and a conclusion that are beyond a restatement of the theme

Conclusion: Overall, the response fits the criteria for Level 1. Brief statements from documents and general summaries of information attempt to address all aspects of the task. Lack of explanation and few details indicate a limited understanding of the task.

Practice Paper E—Score Level 2

The response:

- Minimally develops all aspects of the task for the restriction of Japanese American civil liberties during World War II
- Is primarily descriptive (unjust incarceration of Japanese Americans resulted from combination of racial prejudice and war hysteria; Fred Korematsu began legal battle to show injustice of internment; Japanese Americans imprisoned without trial despite being loyal Americans who should have all rights of any other citizen; today injustice of internment seems obvious but racial prejudice high after Japanese attack; injustice and racial prejudice continue today)
- Incorporates limited relevant information from documents 1, 3, 5, and 6
- Presents no relevant outside information
- Includes few relevant facts, examples, and details (Japanese Americans evacuated to internment camps as result of surprise attack on Pearl Harbor by Japan beginning American involvement in World War II; President Reagan attempted to monetarily compensate those imprisoned; Korematsu case cited during ban of travel to United States from predominantly Muslim countries)
- Demonstrates a general plan of organization; includes a one sentence introduction and a conclusion that states although we cannot change what happened we can learn from it

Conclusion: Overall, the response fits the criteria for Level 2. Document interpretation minimally addresses all aspects of the task and demonstrates a limited understanding of the restriction of Japanese American civil liberties during World War II. A few thoughtful connections are included but lack of development weakens their impact.